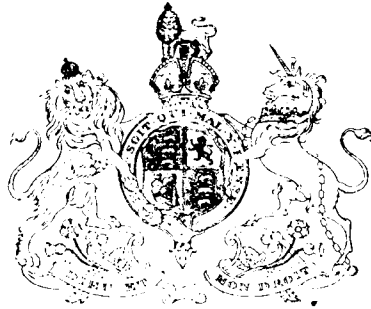




CHAPTER cxcvi.

An Act for conferring further powers upon the Great Western Railway Company in respect of their own undertaking and upon that Company and the London and North Western Railway Company and the Midland Railway Company in respect of undertakings in which they are jointly interested for amalgamating the Ely Valley Railway Company with the Great Western Railway Company and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS it is expedient that the Great Western Railway Company (in this Act called “the Company”) should be empowered to make execute and maintain the railways and the deviations widening and alteration of railways and other works and to exercise the powers by this Act respectively authorised and conferred upon them and to acquire for the purposes of this Act and for the general purposes of their undertaking and works connected therewith and for providing increased accommodation certain lands houses and buildings in this Act described or referred to :

And whereas it is expedient that the Company and the London and North Western Railway Company (in this Act called “the North Western Company”) should be empowered to acquire the lands in this Act mentioned or referred to in that behalf :

And whereas it is expedient that the Company and the Midland Railway Company (in this Act called “the Midland Company”) should be empowered to make execute and maintain the widening alteration and improvement of their railway and to exercise the other powers in this Act mentioned or referred to in that behalf :

A.D. 1903.

— And whereas plans and sections showing the lines and levels of the railways and other works by this Act authorised to be constructed and plans showing the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks of the peace for the several counties within which such railways and other works will be constructed and such lands are situated and are hereinafter respectively referred to as the deposited plans sections and books of reference :

And whereas it is expedient that the time now limited by the Great Western Railway Act 1901 for the compulsory purchase of lands for and for the completion of Railways (No. 3 and No. 3A) authorised by the Great Western Railway (New Works) Act 1898 and the time now limited by the last-mentioned Act for the completion of the harbour works and railways described in and authorised by section 6 of that Act should be extended :

And whereas the undertaking of the Ely Valley Railway Company (in this Act called “the Ely Valley Company”) is under the authority of Parliament leased to and worked by the Company :

And whereas the Third Schedule to this Act contains a statement of the particulars of the capital issued and raised by the Ely Valley Company :

And whereas the Company have subscribed for and now hold by themselves or their nominees the stock of the Ely Valley Company mentioned or referred to in the third column of the said Schedule and it is expedient that the Ely Valley Company should be amalgamated with the Company in manner provided by this Act :

And whereas it is expedient that some of the provisions of the existing Acts of the Company should be amended or repealed and that further powers should be conferred upon the Company as hereinafter provided :

And whereas it is expedient that the Company should be authorised to raise an additional sum of money and to apply their funds for the purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that the North Western Company and the Midland Company should respectively be empowered to apply their funds as provided by this Act :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

A.D. 1903
—

1. This Act may be cited for all purposes as the Great Western Railway Act 1903. Short title.

2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :— Incorporation of general Acts.

The Lands Clauses Acts :

The Railways Clauses Consolidation Act 1845 :

Part I. (relating to the construction of a railway) Part II. (relating to extension of time) and Part V. (relating to amalgamation) of the Railways Clauses Act 1863 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

The expression “the railway” or “the railways” means the new railways and the deviations of railways by this Act authorised ;

A.D. 1903.

The expression "the two companies" means the Company and the North Western Company or whichever of those companies exercises the powers by this Act conferred upon the two companies ;

The expression "the joint companies" means the Company and the Midland Company or whichever of those companies exercises the powers by this Act conferred upon the joint companies ;

The expression "the date of amalgamation" means the first day of July 1903 ;

The expressions "parish clerks" and "clerks of the several parishes" in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

Protection of
gas and water
mains of local
authorities.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
make new
railways
deviations
and works.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections relating thereto the railways and deviations and widening and alteration of railways hereinafter described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes The new railways and deviations and widening and alteration of railways and works hereinbefore referred to and authorised by this Act are—

Hanwell Loop :—

A Railway (No. 4) 3 furlongs and 6·6 chains in length wholly in the county of Middlesex commencing in the parish and urban district of Hanwell by a junction with the main line of the Company at or near the bridge carrying that railway over Church Road and terminating in the parish and borough of Ealing by a junction

with Railway (No. 2) authorised by the Great Western Railway (Additional Powers) Act 1897 and now in course of construction at a point 13 chains or thereabouts south of the eastern end of Graham Gardens: A.D. 1903.

Park Royal:—

A Railway (No. 5) 4 furlongs and 8 chains in length wholly in the county of Middlesex commencing in the parish of Twyford Abbey in the urban district of Greenford by a junction with Railway (No. 1) authorised by the Great Western Railway (Additional Powers) Act 1897 and now in course of construction at a point five chains or thereabouts east of the bridge carrying the Ealing and South Harrow Railway over that railway and terminating in the parish and urban district of Acton at or near the south-eastern corner of Ruckholt Farm buildings:

Greenford Loop:—

A Railway (No. 6) 2 furlongs and 6·4 chains in length wholly in the parish of Greenford in the urban district of Greenford in the county of Middlesex commencing by a junction with the said Railway (No. 2) authorised by the Great Western Railway (Additional Powers) Act 1897 at a point three chains or thereabouts east of the easternmost corner of the field numbered 118 on the 25-inch Ordnance map (second edition 1896) of the said parish and terminating by a junction with Railway (No. 1) authorised by the said Act at a point five chains or thereabouts west of the south-western corner of the field numbered 275 on the said map:

Fishguard to Letterston Up Line:—

A Railway (No. 7) 3 miles 5 furlongs and 3 chains in length wholly in the county of Pembroke commencing in the parish of Llanwnda by a junction with the Clynderwen and Goodwick Branch Railway of the Company at a point 14 chains or thereabouts south-west of Goodwick Station and terminating in the parish of Llanstinan in the rural district of Haverfordwest by a junction with the said railway at a point 58 chains or thereabouts north-west of the bridge carrying the said railway over the main road leading from Haverfordwest to Fishguard:

Deviation of Castle Cary and Langport Railway:—

A Deviation (No. 1) 2 miles 5 furlongs and 6·6 chains in length wholly in the county of Somerset of Deviation (No. 1) authorised by the Great Western Railway Act

A.D. 1903.

1899 of Railway (No. 2) authorised by the Great Western Railway (New Works) Act 1898 commencing in the parish of Somerton by a junction with the said authorised Deviation (No. 1) in the field numbered 768 on the 25-inch Ordnance map (first edition 1887) of the parish of Somerton and terminating in the parish of Charlton Mackrell by a junction with the said authorised Deviation (No. 1) at a point in the eastern boundary of the field numbered 381 on the 25-inch Ordnance map (first edition 1885) of the said parish :

St. Germans to Saltash :—

A Deviation (No. 2) 4 miles and 4·6 chains in length wholly in the county of Cornwall of the Cornwall Railway of the Company commencing in the parish of St. Germans at or near St. Germans Station and terminating in the parish of St. Stephens by Saltash at a point 36 chains or thereabouts east of the viaduct carrying that railway over Forder Lake ; And the Company may abandon and discontinue the maintenance and user of so much of the existing Cornwall Railway as will be rendered unnecessary by the construction of the said intended Deviation (No. 2) and may retain hold and appropriate the site and soil thereof for the purposes of this Act or for the general purposes of the Company or may sell and dispose of the same :

Provided that all Post Office telegraphs existing on along or across so much of the existing Cornwall Railway as may be abandoned and discontinued as aforesaid shall be removed therefrom to the said Deviation Railway (No. 2) by this Act authorised at the Company's expense before the said portion of the existing Cornwall Railway is abandoned and discontinued as aforesaid :

Clarbston Road to Letterston :—

A Deviation (No. 3) 4 miles and 0·6 chain in length wholly in the county of Pembroke of Railway (No. 3) authorised by the Great Western Railway (New Works) Act 1898 commencing in the parish of Saint Dogwells by a junction with the said railway at a point in the southern boundary of the field numbered 512 on the 25-inch Ordnance map (first edition 1888) of the said parish and terminating in the parish of Spittal by a junction with the said railway at a point in the eastern boundary of the field numbered 119 on the 25-inch Ordnance map (first edition 1888) of that parish :

A.D. 1903.

Height and
span of
bridges.

8. The Company may make the arches of the bridges for carrying the new railway and the widening and alteration of railway over the roads next hereinafter mentioned of any heights and spans not less than the heights and spans hereinafter mentioned in connection therewith respectively (that is to say):—

No. on deposited Plans.	Parish or Area.	Description of Road.	Height.	Span.
RAILWAY NO. 7.				
4	Parish of Llanwnda - -	Public -	14 feet 6 inches -	20 feet.
5	Parish of Llanwnda - -	Public -	14 feet 6 inches -	20 feet.
DEVIATION NO. 1.				
20	Parish of Somerton - -	Public -	15 feet -	20 feet.
27	Parish of Somerton - -	Public -	15 feet -	20 feet.
3	Parish of Charlton Mackrell	Public -	15 feet -	20 feet.
15	Parish of Charlton Mackrell	Public -	14 feet -	20 feet.
21	Parish of Charlton Mackrell	Public -	14 feet -	20 feet.
DEVIATION NO. 3.				
11	Parish of Spittal - -	Public -	14 feet -	15 feet.

WIDENING AND ALTERATION OF THE ALCESTER AND BEARLEY BRANCH RAILWAY.

4	Parish of Wootton Wawen - -	Public -	14 feet 6 inches -	20 feet.
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Width of
certain
roadway.

9. The Company may make the roadway over the bridge by which the following road will be carried over the deviation of railway hereinafter mentioned of such width between the fences thereof as the Company think fit not being less than the width hereinafter mentioned in connection therewith (that is to say):—

No. on deposited Plans.	Parish or Area.	Description of Roadway.	Width of Roadway.
DEVIATION NO. 2.			
73	Parish of St. Stephens-by-Saltash -	Public - -	20 feet.

Power to
divert roads
as shown on
deposited
plans.

10. The Company may divert the public highways referred to in the next following table in the manner shown upon the deposited plans and sections and when and as in each case the new portion of any road is made to the satisfaction of two justices and is open for public use may stop up and cause to be discontinued as a road so

much of the existing road as will be rendered unnecessary by the new portion of road (that is to say) :—

A.D. 1903.

Railway.	Parish or Area.	No. of Road on Plans.
No. 7	Parish of Llanwnda	5
No. 7	Parish of Manorowen	10
Deviation No. 1	Parish of Somerton	20
Deviation No. 2	Parish of St. Stephens-by-Saltash	90

And when and so soon as each of the said roads is so stopped up all rights of way over the same shall cease and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road stopped up as far as the same is bounded on both sides by lands of the Company.

11. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railway and deviations and widening and alteration of railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered.

Company not liable to repair surface of road level of which is not permanently altered.

12.—(1) If and when the Company shall acquire the Baptist burial ground numbered on the deposited plans of the Deviation (No. 3) by this Act authorised 15 in the parish of Spittal they shall before applying or using any part thereof for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in the said burial ground.

As to removal of human remains.

(2) Before proceeding to remove any such remains the Company shall publish a notice for three successive days in two local newspapers circulating in the county of Pembroke to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial ground may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to

A.D. 1903. — and re-interred in any burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the Haverfordwest County Court who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of ten pounds) shall be defrayed by the Company such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Company in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section the Company may remove the remains of the deceased person and cause them to be interred in such other burial ground or cemetery in which burials may legally take place as the Company think suitable for the purpose.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Company be removed and re-erected at the place of re-interment of such remains or at such place within the county of Pembroke as the registrar of the Haverfordwest County Court may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Company.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the rural district of Haverfordwest.

Works below
high-water
mark not
to be com-
menced
without con-
sent of Board
of Trade.

13. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at

any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1903.

14. The Company shall not under the powers of this Act within the limits of the dockyard port of Plymouth construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Admiralty to be signified in writing under the hand of the Secretary of the Admiralty and then only according to such plan and under such restrictions and regulations as the Admiralty may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Admiralty may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be commenced without consent of Admiralty.

15. If a work constructed by the Company on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Admiralty may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Abatement of work¹ abandoned or decayed.

16. If at any time the Admiralty deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over through or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Survey of works by Admiralty.

17. In case of injury to or destruction or decay of the works or any part thereof the Company shall lay down such buoys exhibit

Provision against danger to navigation.

A.D. 1903. such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the King's harbour master of the Hamoaze and shall apply to the said King's harbour master for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Lights on
works during
construction.

18. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the King's harbour master of the Hamoaze shall from time to time require or approve.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent
lights on
works.

19. The Company shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the King's harbour master of the Hamoaze shall from time to time direct.

If the Company fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Period for
completion
of railways.

20. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Imposing
penalty un-
less railways
opened.

21. If the Company fail within the period limited by this Act to complete the railways and open the same other than Railway No. 5 for the public conveyance of passengers and Railway No. 5 for public traffic the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for the public conveyance of passengers or public traffic as the case may be or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854. A.D. 1903.
—

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster General for and on behalf of the Supreme Court in the Bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company or the joint committee (as the case may be) was prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control. Provided that want of sufficient funds shall not be held to be a circumstance beyond their control.

22. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit. Application
of penalty.

If no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid shall have been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the

A.D. 1903. — benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Abandonment of portion of authorised line.

23. The Company may abandon the construction of (A) so much of the Deviation (No. 1) authorised by the Great Western Railway Act 1899 of Railway (No. 2) authorised by the Great Western Railway (New Works) Act 1898 as will be rendered unnecessary by the construction of the Deviation (No. 1) by this Act authorised and (B) so much of Railway (No. 3) authorised by the Great Western Railway (New Works) Act 1898 as will be rendered unnecessary by the construction of the Deviation (No. 3) by this Act authorised.

Compensation for damage to land by entry &c. for purposes of railway abandoned.

24. The abandonment by the Company under the authority of this Act of any portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or by the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Great Western Railway (New Works) Act 1898 and the Great Western Railway Act 1899.

Compensation to be made in respect of portions of railways abandoned.

25. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Power to lay additional rails at level crossings.

26. Subject to the provisions of this Act the Company may in the lines and according to the levels shown upon the deposited

plans relating thereto respectively lay down an additional line of rails adjoining the existing line of rails at each of the level crossings hereinafter referred to (that is to say) :—

- (A) At the crossing by the Company's Minehead Branch Railway in the parish of Carhampton in the county of Somerset of the road leading from Carhampton to Watchet at the western end of Blue Anchor Station; and
- (B) At the crossing by the Company's Durston and Yeovil Railway in the parish of Martock in the county of Somerset of the road leading from Martock to Somerton at the south-eastern end of Martock Station :

And the Company may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto respectively as may be required for those purposes.

27. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the widenings and lengthenings of bridges and the new roads and footpaths and alterations and deviations of roads and footpaths and other works hereinafter mentioned and may stop up and discontinue the portions of roads streets and footpaths and exercise the other powers hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes and also the lands hereinafter mentioned and delineated and described as aforesaid (that is to say) :—

They may make and maintain the widenings and lengthenings of bridges hereinafter mentioned (that is to say) :—

WIDENINGS AND LENGTHENINGS OF BRIDGES.

In the parish and urban district of Acton in the county of Middlesex the widening on the southern side of the bridge carrying the main line of the Company over Old Oak Common Lane :

In the parish of Milton in the county of Berks the widening on the northern side of the bridge carrying the main line of the Company over Lotmead Lane :

In the parish of Steventon in the county of Berks the lengthening at the north-western end of the bridge carrying the road from Steventon to East Ilsley over the main line of the Company at Steventon Station :

A.D. 1903.
Newbury.

In the parish and borough of Newbury in the county of Berks the lengthening at both ends of the bridge carrying the road leading from Stroud Green to the Market Place over the Berks and Hants Railway of the Company at the eastern end of Newbury Station And in connection therewith the Company may enter upon take and use certain lands in the said parish lying on and adjoining the northern side of the said railway and the eastern side of the said road :

Widening
between
Acocks
Green and
Olton.

In the parish of Solihull in the county of Warwick and in the parish and rural district of Yardley in the county of Worcester the widening on the north-eastern side of the bridge which carries the Company's Oxford and Birmingham Railway over Lincoln Road :

In the said parish of Solihull the widening on the north-eastern side of the bridges which respectively carry the Company's Oxford and Birmingham Railway over the public roads at each end of Olton Station :

Newport
and Severn
Tunnel.

In the parish of Llandeenny in the rural district of Magor in the county of Monmouth the lengthening at the southern end of the bridge carrying the road leading from Llandeenny to Wilerrick over the South Wales Railway of the Company :

In the parish of Magor in the county of Monmouth the lengthening at the southern end of the bridge carrying the road leading from Redwick to Magor over the said South Wales Railway at Magor Station :

In the parish of Undy in the county of Monmouth the lengthening at the southern end of the bridge carrying the road leading from Undy to Vinegar Hill over the said South Wales Railway.

They may execute the works and exercise the powers following (that is to say) :—

ROADS FOOTPATHS &c.

In the parish of Milton in the county of Berks—

Steventon
and Didcot
Widening.

They may alter and divert so much of the road leading from Milton Hill to Milton which crosses the main line of the Company on the level at Milton Crossing as lies between points respectively about 5 chains south and 10 chains north of that crossing and may carry the same over the said main line by means of a bridge :

In the parish of Steventon in the county of Berks—

They may stop up and discontinue (1) so much of the road leading from Steventon Farm to Steventon which crosses the

main line of the Company on the level at Causeway Crossing as lies between the southern boundary of the Company's property and a point 3 chains or thereabouts north of that point and (2) so much of Stocks Lane which crosses the said main line on the level at Stocks Lane Crossing as lies between the southern boundary of the Company's property and a point 4 chains or thereabouts north of that crossing and in lieu thereof they may make (1) a new road commencing at or near the junction of Stocks Lane with the first-mentioned road and a point in Stocks Lane 4 chains or thereabouts south of the said Stocks Lane Crossing and may carry the same over the said main line by means of a bridge and (2) a new road along the southern side of the said main line between the first-mentioned road at Causeway Crossing and a point distant 10 chains or thereabouts east thereof;

A.D. 1903.

Provided that before stopping up and discontinuing the said road leading from Steventon Farm to Steventon under the powers of this Act the Company shall construct at or near the said Causeway Crossing either a footbridge or subway for foot passengers not less than six feet in width and in the event of a subway seven feet in height;

They may stop up and discontinue so much of the footpath leading from the Causeway to Cat Street which crosses the said main line 6 chains or thereabouts east of Causeway Crossing as lies between its junction with Cat Street and a point 10 chains or thereabouts north-west thereof and in lieu thereof they may make a new footpath between the last-mentioned point in the intended new road firstly hereinbefore described 5 chains or thereabouts east of the said point:

In the parish of Box in the county of Wilts—

They may stop up and discontinue so much of the road and footpath which cross the Company's main line of railway on the level at a point 24 chains or thereabouts north east of the bridge carrying that railway over the road leading from the Bath main road to Ashley as lies between the boundaries of the Company's property and in lieu thereof they may make a footbridge over the said railway at or near the site of the said level crossing:

Ashley
Crossing.

In the parish of Hullavington in the county of Wilts—

They may stop up and extinguish all rights of way over the footpath which crosses the Company's South Wales and Bristol Direct Railway (now in course of construction)

South Wales
and Bristol
Direct
Railway.

A.D. 1903.
—

46 chains or thereabouts east of the bridge carrying Pig Lane over that railway between the junctions of the said footpath with the road leading from Pig Lane to Norton and the road leading from the last-mentioned road to Hullavington :

In the parish of Little Somerford in the county of Wilts—

They may stop up and extinguish all rights of way over so much of the footpath which crosses the said South Wales and Bristol Direct Railway on the level at a point 14 chains or thereabouts west of the bridge carrying the said railway over the road leading from Great Somerford to Little Somerford as lies between the boundaries of the Company's property :

In the parish and city and county borough of Bristol in the county of Somerset—

Portishead
Loop.

They may alter and divert so much of the road known as South Lane as lies between the bridge carrying that road over the Bristol and Portishead Railway of the Company and a point 8 chains or thereabouts south-west of that bridge ;

They may stop up and discontinue so much of the occupation road and footpath which are carried over the main line of the Company by means of a bridge 22 chains or thereabouts south-west of the junction of the said Bristol and Portishead Railway with the said main line as lies between their junction with South Lane and a point 11 chains or thereabouts south-west of the said junction and in lieu thereof they may make a new footpath along the south-eastern side of the said main line between the last-mentioned point and a point in Bridgwater Road 7 chains or thereabouts south-west of the bridge carrying that road over the said main line :

In the parish and county borough of Gloucester and in the parish of Barnwood in the county of Gloucester—

Gloucester.

They may alter and divert so much of the footpath which crosses the Company's Cliftonham and Great Western Union Railway (Western Loop) on the level at or near the Emlyn Waggon Works as lies between points about 1 chain north-west and 10 chains south-east of the western boundary of the said loop and may carry the same under that loop by means of a subway and they may also alter and divert so

much of the same footpath as lies between points about 15 chains and 19 chains south-east of the said boundary and may carry the same over the eastern loop of the said railway by means of a footbridge : A.D. 1903.
—

In the parish of Bruton in the county of Somerset—

They may stop up and extinguish all rights of way over the footpath which crosses the Company's Wilts Somerset and Weymouth Railway on the level at or near a point 7 chains or thereabouts south-west of the bridge carrying Godminster Lane over that railway between its junction with that lane and the road leading from Lusty to that lane : Bruton.

In the parish of Wheathill in the rural district of Wincanton in the county of Somerset—

They may alter and divert so much of the road leading from Higher Wheathill Farm to Lower Wheathill Farm as lies between a point in that road adjoining the northern boundary of the field or enclosure numbered 43 on the 25-inch Ordnance map (1886 edition) of the said parish and a point in that road 9 chains or thereabouts south of the said boundary : Langport
and Castle
Cary.

In the parish of Keinton Mandeville in the county of Somerset—

They may stop up and discontinue so much of Spring Gardens Lane as lies between its junction with the road leading from Ilchester to Keinton Mandeville and a point in that lane 18 chains or thereabouts from the said junction and in lieu thereof they may make a new road from the said point to a point in the first-mentioned road 8 chains or thereabouts south of the said junction :

In the parish of Alford in the rural district of Wincanton in the county of Somerset—

They may stop up and discontinue so much of the road leading from Alford Well Farm to Alford as lies between points respectively about 15 chains and 29 chains south of its junction with the main road from Somerton to Castle Cary and in lieu thereof they may make a new road from the first-mentioned point to a point in the existing road opposite Alford Well Farm and may carry the same over Railway (No. 2) authorised by the Great Western Railway (New Works) Act 1898 by means of a bridge. Provided always

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that notwithstanding anything shown on the deposited sections the gradient of the new road shall not be steeper than 1 in 20 :

In the parish of Somerton in the county of Somerset —

They may stop up and discontinue so much of the footpath leading from Cemetery Road to West Street at or near the public-house known as the Unicorn as lies between Cemetery Road and a point 8 chains or thereabouts south of its junction with that road and in lieu thereof they may make a new footpath between the said point and a point in Cemetery Road at or near the south-east corner of the Cemetery :

In the parish of Long Sutton in the county of Somerset—

Long Sutton.

They may stop up and discontinue so much of Northfield Lane as lies between its junction with Longmarsh Lane and a point in Northfield Lane 16 chains or thereabouts from the said junction and in lieu thereof they may make a new road between the said point and a point in Longmarsh Lane 5 chains or thereabouts north of the said junction :

In the parish of Birmingham in the city and county borough of Birmingham in the county of Warwick—

Birmingham.

They may alter the levels of (1) Mary Ann Street for a distance of 3 chains or thereabouts from its junction with Livery Street (2) Henrietta Street for a distance of 5 chains or thereabouts from its junction with Livery Street (3) Livery Street between points respectively about 2 chains south-east and 4 chains north-west of its junction with Mary Ann Street and between points respectively about 4 chains north-west and 4 chains south-east of its junction with Northwood Street and (4) Northwood Street between points respectively about 2 chains south-west and 2 chains north-east of its junction with Livery Street :

In the parish of Tanworth in the county of Warwick—

Tanworth.

They may in connection with Railway (No. 1) authorised by the Great Western Railway Act 1901 alter the levels of the road leading from Tanworth to Henley-in-Arden between points respectively about 2 chains south and 12 chains north of the junction with that road of the road leading to Kemp's Green at Danzey Green and of the last-mentioned road for a distance of 5 chains or thereabouts from the said junction :

In the parish of Beaudesert in the rural district of Stratford-on-Avon in the county of Warwick— A.D. 1903.

They may stop up and extinguish all rights of way over the fields or enclosures numbered respectively 38 and 39 on the 25-inch Ordnance map (first edition 1887) of the said parish other than the footpath leading from the main road at Henley-in-Arden to Bear Lane along the eastern side of the said fields or enclosures and shown on the deposited plans but before doing so they shall in lieu thereof make a new footpath commencing by a junction with the existing footpaths at the north-western corner of the said field or enclosure numbered 39 and terminating in the southern boundary of the said field or enclosure numbered 39 at a point 2 chains or thereabouts from the western boundary thereof and shall also provide suitable access between the Bear Lane end of the above-mentioned excepted footpath and the southern end of the said new footpath :

In the parish of Wootton Wawen and in the parish of Beaudesert in the rural district of Stratford-on-Avon in the county of Warwick—

They may stop up and discontinue so much of the footpath leading from Buckley Green to the main road at or near the Henley-in-Arden Station of the Company as lies between its junction with that road and a point 16 chains or thereabouts from the said junction and in lieu thereof they may make a new footpath between the said point and a point in the said main road 5 chains or thereabouts north of the said junction :

In the parish of Shrewley Hamlet in the county of Warwick—

They may alter and divert so much of the footpath which crosses on the level the Company's Oxford and Birmingham Railway and the loop line connecting their Hatton and Stratford-upon-Avon Railway with that railway as lies between the north-eastern boundary of the first-mentioned railway and a point in the said footpath 19 chains or thereabouts south-west of the said boundary and may carry the same over the said railway by means of a footbridge :

In the parish and rural district of Yardley in the county of Worcester—

They may stop up and discontinue the footpath leading from the Birmingham and Henley-in-Arden main road to the public road opposite Sarchole Mill and may stop up and

Simcox's
Agreement.

- A.D. 1903. — extinguish all rights of way (if any) over the field or enclosure numbered 249 on the 25-inch Ordnance map (first edition 1884) of the said parish ;
- Tyseley Hill. They may alter and divert so much of Tyseley Hill Road as lies between points respectively about 5 chains west and 4 chains east of the bridge carrying that road over the Company's Oxford and Birmingham Railway and in connection therewith (1) they may stop up and discontinue so much of Knight's Lane as lies between its junction with Tyseley Hill Road and a point in that lane 3 chains or thereabouts south of the said junction and in lieu thereof may make a new road between the last-mentioned point and a point in Tyseley Hill Road 2 chains or thereabouts west of the said bridge and (2) they may stop up and discontinue so much of King's Road as lies between its junction with Tyseley Hill Road and a point 7 chains or thereabouts north of the said junction and in lieu thereof they may make a new road between the said last-mentioned point and a point in the diverted Tyseley Hill Road $1\frac{1}{2}$ chains or thereabouts north-west of the said bridge and $1\frac{1}{2}$ chains or thereabouts north of the said railway :

In the parish and county borough of Wolverhampton and in the parish of Bushbury in the county of Stafford—

- Bushbury. They may alter and divert so much of the footpath leading from Park Lane to the towpath of the Birmingham Canal and which passes under the Company's Wolverhampton and Bushbury Branch and Shrewsbury and Birmingham Railways as lies between the subway carrying the footpath under the last-mentioned railway and the eastern boundary of the said Wolverhampton and Bushbury Branch Railway And in connection therewith they may enter upon take and use certain lands situate between the said railways and forming part of the field or enclosure numbered 687 on the 25-inch Ordnance map (second edition 1902) of the parish of Bushbury and at and near the southern boundary of the said field or enclosure The provisions of subsection 3 of section 35 of the Great Western Railway Act 1901 so far as they are altered or amended by or are inconsistent with the provisions of this enactment are hereby repealed :

In the parish of Colwall in the county of Hereford—

- Colwall. They may stop up and discontinue so much of the footpath which crosses the Company's Worcester and Hereford Railway on the level at a point about 3 chains south-west of

the bridge carrying the road leading from Colwall Green to Colwall Stone over that railway as lies between the junctions of the said footpath with that road and with the footpath on the north-westerly side of the said railway leading from Brockbury Hall to the said road and in lieu thereof they shall make and maintain (1) a new footpath along the western side of that road between points respectively about 5 chains south and 7 chains north of the said bridge and (2) a new footpath connecting the last-mentioned footpath with the said footpath from Brockbury Hall to the said road at or near the northern end of the said bridge ;

A.D. 1903.

They may stop up and discontinue so much of the occupation road and footpath which crosses the Company's Worcester and Hereford Railway on the level at the south-western end of Colwall Station as lies between the boundaries of the Company's property and they shall in lieu thereof carry the said footpath over the said railway by means of the existing footbridge which they shall for ever after maintain and keep in good and efficient order and repair and the public shall at all times have the same uninterrupted right of user over such bridge as they were possessed of over the said footpath prior to the passing of this Act :

In the parish of Wacton in the rural district of Bromyard in the county of Hereford—

They may alter and divert so much of the bridle path leading from Bredenbury to Thornbury which crosses the Company's Leominster and Bromyard Railway on the level at or near the mile post on that railway indicating $138\frac{1}{4}$ miles from Paddington as lies between points respectively about 2 chains north-east and 4 chains south-west of the said level crossing and may carry the same under the said railway by means of the existing subway :

Wacton.

In the parish of Brymbo in the county of Denbigh—

They may stop up and discontinue (1) the footpath which crosses the Wrexham and Minera and Vron Branch Railways of the Company on the level between its junction with Mount Hill on the western side of the bridge carrying the said branch railway over Mount Hill and its junction with Railway Road and (2) the footpath leading from the last-mentioned footpath to Mount Hill at a point 1 chain or thereabouts south-east of the said bridge and in lieu of the said footpaths they may make a new footpath between the

Brymbo.

A.D. 1903.

last-mentioned point and a point in Railway Road $\frac{1}{2}$ chain or thereabouts south of the bridge carrying the said Wrexham and Minera Branch Railway over that road :

In the parish and county borough of Newport in the county of Monmouth—

Newport and
Severn
Tunnel.

They may stop up and discontinue so much of the road leading from Lliswerry to Christchurch which crosses the South Wales Railway of the Company partly on the level and partly by means of a subway as lies between the northern boundary of the Company's property and a point 2 chains or thereabouts south thereof and in lieu thereof they may make a new road between points respectively about 8 chains south and 6 chains north of the said railway and may carry the same over that railway by means of a bridge :

In the parish of Christchurch in the county of Monmouth—

They may alter and divert so much of the road leading from Whitson to Milton which crosses the said South Wales Railway on the level at Llanwern Station as lies between points respectively about 10 chains south and 6 chains north of the said level crossing :

In the parishes of Bishton and Wilcrick in the rural district of Magor in the county of Monmouth—

They may alter and divert so much of the road leading from Green Moor to Wilcrick which crosses the said South Wales Railway partly on the level and partly by means of a subway as lies between points respectively about 6 chains south and 6 chains north of the said crossing and may carry the same over the said railway by means of a bridge and may stop up and discontinue so much of the road leading from Bishton to the last-mentioned road which also crosses the said railway partly on the level and partly by means of a subway between its junction with the said first-mentioned road and a point 10 chains or thereabouts north-west thereof and in lieu thereof they may make a new road along the northern boundary of the Company's property between the last-mentioned point and a point 8 chains or thereabouts east thereof :

In the parish of Magor in the county of Monmouth—

They may alter and divert the road along the southern boundary of the South Wales Railway of the Company between points respectively about 8 chains west and 17

chains east of the bridge over the said railway at Magor Station and may stop up and discontinue so much of the road leading from Green Moor to Magor which crosses the said railway partly on the level and partly by means of a subway as lies between the northern boundary of the said railway and a point 4 chains or thereabouts south-west thereof and in lieu thereof they may make a new road along the south side of that railway between the last-mentioned point and a point in the road from Redwick to Magor 8 chains or thereabouts west of the said bridge :

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In the parish of Llangan East in the county of Carmarthen—

They may stop up and extinguish all rights of way for foot passengers over the road which crosses the South Wales Railway of the Company on the level at the eastern end of Whitland Station and in lieu thereof they may make a footbridge for foot passengers at or near the said level crossing and in connection therewith they may enter upon take and use certain lands at or near the southern side of the said crossing :

In the parish of Letterston in the county of Pembroke—

They may stop up and discontinue so much of the road leading from Heathfield to the Fishguard Road at Restennell between its junction with the road from Priskilly Cross to Letterston and a point 19 chains or thereabouts east of the said junction and in lieu thereof they may make a new road between the last-mentioned point and a point on the said road from Priskilly Cross to Letterston 8 chains or thereabouts south-east of the said junction :

Clarbeston Road and Letterston Railway.

In the parish of St. Mary in Liberty in the borough of Tenby in the county of Pembroke—

They may stop up and discontinue the footpath leading from the repairing shops of the Company on the western side of Tenby Station to the station yard and which crosses the Company's Pembroke and Tenby Railway on the level at the northern end of the said station and in lieu thereof they may make a new footpath between the northern end of the said station yard and a point in the road leading from Tenby to Penally at or near the eastern side of the bridge carrying the said railway over that road.

28. Subject to the provisions of this Act the Company may widen on both sides the bridge in the parish of Aston in the city

Works at Sandy Lane Birmingham.

A.D. 1903. and county borough of Birmingham in the county of Warwick which carries the Oxford and Birmingham Railway of the Company over Sandy Lane and the Warwick and Birmingham Canal and in connection therewith the Company and the Corporation of Birmingham and the Company of Proprietors of the Warwick and Birmingham Canal Navigation or any one or more of them may alter and divert so much of Sandy Lane as lies between points respectively about 3 chains south and $1\frac{1}{2}$ chains north of the said bridge and may make such alterations to the said canal and the lock under and adjacent to the said bridge as may be agreed and the Company the said proprietors and the said corporation may enter into and carry into effect contracts and agreements for or in relation to the execution of the said works or any of them and the cost thereof and incidental thereto and the Company and the said corporation and proprietors or any of them may enter upon take and use such of the lands delineated on the deposited plans relating to the matters aforesaid and described in the deposited books of reference thereto as may be required for the purposes aforesaid Any expenses incurred by the said corporation with respect to the purposes aforesaid or any of them shall be deemed to be expenses incurred under and for the purposes of the Public Health Act 1875.

For protection of Solihull Rural District Council.

29. Notwithstanding anything shown on the deposited plans and sections the following provisions for the protection of the rural district council for the district of Solihull (in this section called "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

- (1) The widening of the bridges at each end of Olton Station by this Act authorised shall be carried out in all things in accordance with plans and sections marked respectively "A" and "B" and signed by James Charles Inglis on behalf of the Company and A. E. Currall on behalf of the council :
- (2) If any dispute shall arise between the Company and the council respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protection of Yardley Rural District Council.

30. Notwithstanding anything shown on the deposited plans and sections the following provisions for the protection of the rural district council for the district of Yardley (in this section

called "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):— A.D. 1903.

- (1) The widening of the bridge carrying the Company's Oxford and Birmingham Railway over Lincoln Road by this Act authorised shall be of a span of not less than 42 feet on the square:
- (2) The new roads and alteration and diversion of Tyseley Hill Road in the parish of Yardley by this Act authorised shall be constructed in accordance with the plan and sections signed by James Charles Inglis on behalf of the Company and Arthur W. Smith on behalf of the council and the Company shall form kerb and channel to the reasonable satisfaction of the council footpaths on both sides of Tyseley Hill Road as diverted for the length of the superstructure of the bridge carrying that road over the Company's Oxford and Birmingham Railway:
- (3) If any dispute shall arise between the Company and the council respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers.

31. For the protection of the mayor aldermen and burgesses of the borough of Wolverhampton (in this section called "the corporation") the following provisions shall have effect except in so far as the corporation and the Company may otherwise agree (that is to say):— For protection of Corporation of Wolverhampton.

- (1) The Company shall construct the diversion of the footpath in the parish and county borough of Wolverhampton and in the parish of Bushbury authorised by this Act in the position and direction shown in pink on the plan signed by James Charles Inglis on behalf of the Company and by George Green on behalf of the corporation:
- (2) The Company shall provide sufficient land for enabling the diverted footpath referred to in the last preceding subsection being made of a width of nine feet and shall construct make up and red-ash the same for a width of not less than six feet:
- (3) The walls of the subway to be constructed under the Wolverhampton and Bushbury Railway of the Company shall be lined with white glazed bricks above three feet from the ground and below with brindled bricks:

A.D. 1903.

- (4) If any dispute shall arise between the Company and the corporation respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protection of corporation of Newport.

32. For the protection of the mayor aldermen and burgesses of the county borough of Newport in the county of Monmouth (in this section called “the corporation”) the following provisions shall have effect except so far as the corporation and the Company may otherwise agree (that is to say) :—

- (1) Notwithstanding the stopping up or the vesting in and appropriation by the Company under the powers of this Act of the site and soil of the portion of the road leading from Lliswerry to Christchurch which crosses the South Wales Railway of the Company in the parish and county borough of Newport in the county of Monmouth the corporation shall be entitled to a perpetual easement to maintain along the site of the said portion of road the sewers drains and water mains and pipes of the corporation at present laid thereunder or therein respectively and to repair alter take up and relay the same respectively from time to time and to lay down and maintain and from time to time repair alter take up and relay any additional sewers drains water mains or pipes in such portion of road in the same and as full a manner as if the said road had not been stopped up and as if the site and soil of such portion of road had not been vested in the Company and without any payment to the Company and the corporation and their servants and workmen may for the purposes aforesaid enter upon and interfere with the works of the Company on the site of the said portion of road and the Company shall afford all reasonable facilities in that behalf and shall not remove alter close up or interfere with such sewers drains mains or pipes or any manholes or other works connected therewith Provided always that all works and operations of the corporation under this subsection which involve interference with any works of the Company shall be executed and done under the superintendence and to the reasonable satisfaction of the Company’s engineer but all such superintendence shall be at the Company’s sole costs and charges :
- (2) The new road in the said parish and county borough of Newport which the Company are by this Act authorised to

construct shall for its entire length including the bridge carrying the same over the South Wales Railway of the Company be of a clear width between the fences thereof of not less than thirty feet measured on the square and notwithstanding anything shown on the deposited sections the inclination of the said road shall not at any point be steeper than 1 in 25: A.D. 1903.

- (3) Any difference which may arise under this section between the corporation and the Company shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

33. For the protection of the Newport (Monmouthshire) Gas Company (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed between the Company and the gas company have effect (that is to say):— For protection of Newport (Monmouthshire) Gas Company.

- (1) The Company shall before filling up or discontinuing the cattle creep or passage under the South Wales Railway of the Company at the point where the said railway crosses the road leading from Lliswerry to Christchurch alter the position of the gas company's main under the said cattle creep and provide for the same being laid and perpetually maintained along or across the bridge proposed to be substituted at the same place for the level crossing now existing there and for the said cattle creep or passage and shall execute in connection therewith all necessary works for the due protection of the said mains in all things at the expense of the Company but subject to the supervision and control of the engineer of the gas company :
- (2) Before commencing any works by this Act authorised which necessitate the removal deviation alteration or support of any pipe or main of the gas company the company shall at least fourteen days before the commencement of any such works give to the gas company notice in writing of their intention so to do accompanied by plans sections and descriptions of the proposed deviation removal or alteration or manner of supporting any such pipe or main and describing the proposed manner of executing the same :
- (3) The work of removal deviation alteration or support so necessitated shall if the gas company within fourteen days from the receipt of such notice from the Company by notice in writing so desire be done by the gas company and the reasonable expenses of the gas company in connection therewith shall be paid by the Company :

A.D. 1903.

(4) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the gas company :

(5) Any difference which may arise between the gas company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889 or any statutory modification thereof.

For protec-
tion of Wrex-
ham Rural
District
Council.

34. For the protection of the Wrexham Rural District Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed between the council and the Company (that is to say) :—

(1) Before the Company stop up or interfere with the footpaths in the parish of Brymbo in the county of Denbigh shown upon the deposited plans as intended to be stopped up they shall—

(A) Convey to the Council sufficient land for the construction of a road twenty feet in width along the line of the proposed diversion of footpath shown upon the deposited plans and shall construct on the said lands a footpath six feet in width for the full length thereof ;

(B) Construct a footpath six feet in width along the west side of the Vron Branch Railway between a point in Mount Hill on the west side of the bridge carrying that branch railway over Mount Hill and a point in the road at the back of the gasworks south of and near to Hot Pool ;

(C) Construct a wooden footbridge on the west side of the bridge known as Bryn Bridge carrying the Company's railway over the road leading from Brymbo Ironworks to "The Lodge" and connecting the said footbridge with the existing footpath leading to Penrhos past the Brymbo Steel Company's laboratory :

Provided always that the council shall provide the necessary land other than the lands of the Company for the construction of the footpath (F) hereinbefore described and shall at their own cost construct a road on the lands to be conveyed to them by the Company as aforesaid and shall maintain the said road footpaths and footbridge to be

constructed by the Company as aforesaid Any expenses incurred by the council under this section shall be deemed to be expenses incurred by them under and for the purposes of the Public Health Act 1875 and for the purposes of this section the council shall have the powers of an urban authority under the said Act :

A.D. 1903.

- (2) On the completion by the Company of the footpaths and footbridge mentioned or referred to in this section the Company may stop up and discontinue (in addition to the footpaths shown on the deposited plans as intended to be stopped up) the footpath leading from a point in Mount Hill about one chain south-east of the bridge carrying the Vron Branch Railway over Mount Hill and the road across the railways and lands of the Company to the road adjoining the gasworks.

35. The Company and the Risca Urban District Council or either of them may subject to the provisions of this Act and of an agreement between the Company and the said council execute the works in the parish and urban district of Risca in the county of Monmouth hereinafter mentioned in substitution for some of the works authorised by section 14 of the Great Western Railway Act 1895 and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes (that is to say) :—

Powers to
Risca Urban
District
Council and
Company.

They may stop up and discontinue so much of the road which is carried under the Company's Monmouthshire (Western Valleys) Railway by means of a subway at a point about 18 chains south-east of Risca Station as lies between the boundaries of the Company's property and the road along the north-eastern boundary of the Company's property between its junction with the first above-mentioned road and the existing bridge over the said railway at the south-eastern end of the said station and in lieu thereof they may make a new road from a point on the first-mentioned road about 1 chain south of the southern end of the said subway to a point on the north-eastern boundary of the Company's property 12 chains or thereabouts south-east of the said station and may carry the same under the railway by means of a subway ;

They may stop up and extinguish all rights of way for vehicular traffic over the Company's railway at or near the south-eastern end of Risca Station and may remove the existing road bridge thereat and in lieu thereof they may

A.D. 1903.

make a footbridge on or near the site of the said road bridge ;

They may stop up and extinguish so much of the footpaths mentioned in subsection (B) of the said section 14 as lies between the boundaries of the Company's property and in lieu thereof they may construct a subway for foot-passengers under the Company's said railway at a point thereon 7 chains or thereabouts north-west of Risca Station ;

They may stop up and discontinue so much of the footpath which crosses the said railway on the level known as Cromwell Crossing as lies between the boundaries of the Company's property and in lieu thereof they may make a new footpath along the north-eastern boundary of the Company's property between the said existing footpath and the subway under the said railway 2 chains or thereabouts north-west of the said crossing ;

They may stop up and extinguish all rights of way across the Nine Mile Point Branch of the said railway at or near a point thereon 35 chains or thereabouts north-west of the said station and in lieu thereof they may make a new footpath between the road on the south-western side of and adjoining the north-western end of the bridge carrying that branch over the River Ebbw and a point in the footpath on the northern side of the said branch 11 chains or thereabouts north-west of the said bridge ;

The provisions of section 14 of the Great Western Railway Act 1895 so far as the same are altered or amended by or are inconsistent with the provisions of this section or of the said agreement are hereby repealed :

And the Company and the Risca Urban District Council may enter into agreements for or in relation to the execution of the said works or any of them and the cost thereof and incidental thereto and any expenses incurred by the said council under or for the purposes of this section shall be deemed to be expenses incurred under and for the purposes of the Public Health Act 1875.

Power to
Company to
acquire
additional
lands.

36. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the general purposes of their undertaking and works connected therewith and for providing increased accommodation all or any of the lands following delineated on the deposited plans thereof and

described in the deposit books of reference relating thereto and may A.D. 1903.
exercise the powers hereinafter mentioned (that is to say):—

In the county of London—

Certain lands in the parish and metropolitan borough of Paddington.

Paddington lying on and adjoining both sides of Stanley Street and Arthur Mews the north-west side of Praed Street and the north-east side of London Street and the Company may stop up and discontinue and extinguish all rights of way over Stanley Street and so much of Arthur Mews as extends for a distance of 80 yards or thereabouts from Francis Street and may enter into and carry into effect agreements with the Postmaster-General with reference to any of the said lands;

Provided that until an agreement has been entered into between the Postmaster-General and the Company with reference to the said lands the Company shall not enter upon take use or appropriate any lands belonging to the Postmaster-General or stop up discontinue or extinguish any rights of way over Stanley Street and Arthur Mews without the consent in writing of the Postmaster-General;

Certain lands in the parish and metropolitan borough of Kensington.
Kensington known as 14a Admiral Place Kensal New Town:

In the county of Middlesex—

Certain lands in the parish and urban district of Acton lying Park Royal.
on and adjoining the north-eastern side of Railway No. 1 authorised by the Great Western Railway (Additional Powers) Act 1897 now in course of construction and abutting on the western side of Willesden Lane:

In the county of Berks—

Certain lands in the parishes of Steventon Milton Harwell and Steventon
and Didcot.
Didcot lying on and adjoining the northern side of the main line of the Company and extending from a point 28 chains or thereabouts west of the Steventon Station of the Company to the Didcot West Junction near the Didcot Station of the Company;

Certain lands in the parish of Hungerford lying between Hungerford.
the Hungerford Station of the Company and the Railway Hotel:

In the county of Bucks—

Certain lands in the parishes of Chepping Wycombe (Rural) Loudwater.
and Wooburn lying on and adjoining the north-eastern side

A.D. 1903. of the Maidenhead and Wycombe Railway of the Company
— and at and near Loudwater Station :

In the county of Wilts—

Swindon. Certain lands in the parish of Stretton St. Margaret lying on and adjoining the north-western side of the Company's main line of railway at and near the junction of the Company's Highworth Branch Railway with the said main line ;

Limpley Stoke. Certain lands in the parish of Limpley Stoke lying on and adjoining the eastern side of the Bathampton Branch Railway of the Company and between points respectively about 5 chains and 8 chains south of Limpley Stoke Station :

In the county of Gloucester—

Bristol. Certain lands in the parish and city and county borough of Bristol extending from the junction of Warwick Road with Stapleton Road in a north-westerly direction to the River Frome :

In the county of Somerset—

Portishead Loop. Certain lands in the parish and city and county borough of Bristol lying on and adjoining both sides of the main line of the Company and between points respectively about 5 chains and 31 chains west of the junction with the said main line of the Bristol and Portishead Railway of the Company ;

Certain lands in the parish of Bishopsworth lying on and adjoining the northern side of the said main line and between the western and eastern junctions therewith of the sidings leading to the South Liberty Colliery ;

Castle Cary. Certain lands in the parish of Castle Cary forming portion of the field or enclosure No. 51 on the 25-inch Ordnance map (second edition 1895) of that parish and situate 4 chains or thereabouts north-west of the easternmost corner of the said field or enclosure ;

Martock. Certain lands in the parish of Martock lying on and adjoining the south-western side of the Durston and Yeovil Railway of the Company and between points respectively about 4 chains and 11 chains north-west of Martock Station :

In the county of Devon—

Stoney-coombe. Certain lands in the parishes of Ipplepen and Abbotskerswell lying on and adjoining the south-eastern side of the South Devon Railway of the Company and between points respectively about 12 chains and 52 chains south-west of the

bridge carrying the said railway over the road leading from Lower Bickley Mill to Maddacombe Cross and known as Stoneycoombe Bridge; A.D. 1903.

Certain other lands in the parishes of Abbotskerswell and Kingskerswell lying on and adjoining the north-western side of the said South Devon Railway and extending from the said Stoneycoombe Bridge to the bridge carrying the said railway over the road leading from Kingskerswell to Maddacombe Cross and known as Kingskerswell Bridge:

In the county of Warwick—

Certain lands in the parish of Solihull lying on and adjoining the north-eastern side of the Company's Oxford and Birmingham Railway and extending from the bridge carrying the said railway over Lincoln Road to the bridge carrying that railway over the New Warwick Road at or near Olton Reservoir; Solihull.

Certain other lands in the said parish lying on and adjoining the south-western side of the said Oxford and Birmingham Railway and extending for distances of 5 chains or thereabouts north-west and 13 chains south-east of Olton Station:

In the county of Worcester—

Certain lands in the parish and rural district of Yardley abutting on both sides of the main road between Warwick and Birmingham and west of and near to the junction of that road with Stockfield Road and extending for a distance of about 24 chains from the said main road in a southerly direction; Tyseley Hill.

In the county of Monmouth—

Certain lands in the parish and county borough of Newport lying on the southern side of the South Wales Railway of the Company and between the approach road to Newport (High Street) Station and the Monmouthshire (Eastern Valleys) Railway of the Company; Newport.

Certain lands in the parish and county borough of Newport and in the parishes of Christchurch Magor and Undy and in the parishes of Llanwern Bishton Wilcrick and Llandeenny in the rural district of Magor lying on and adjoining the southern side of the South Wales Railway of the Company and between Lliswerry Road and a point 45 chains or thereabouts east of Magor Station; Newport and
Severn
Tunnel.

A.D. 1903. Certain lands sidings and other works in the parish of
Blaina. Aberystroth in the urban district of Nantyglo and Blaina lying on and adjoining the western side of the Monmouthshire (Western Valleys) Railway of the Company and between points about 6 chains and 24 chains south of Blaina Station ;

Nantyglo. Certain lands lines of railway sidings and other works in the parish of Aberystroth in the urban district of Nantyglo and Blaina forming a portion of the Monmouthshire (Western Valleys) Railway and lying between (1) the southern end of Nantyglo Station and a point on that railway known as Nantyglo Gate and (2) points respectively about 17 chains and 24 chains north of the said station :

In the county of Glamorgan—

Coed-ffranc and Llan-samlet Higher. Certain lands in the parishes of Coed-ffranc and Llan-samlet Higher lying on and adjoining both sides of the South Wales Railway of the Company and between points respectively about 29 chains and 73 chains west of Dynevor Station ;

Treharris. Certain lands in the parish and urban district of Merthyr Tydfil lying on and adjoining the northern side of the Taff Vale Extension Railway of the Company and at and near the goods shed at Treharris Station ;

Aberdare. Certain lands in the parish and urban district of Aberdare lying on and adjoining the north-eastern side of the Vale of Neath Railway of the Company and between Bridge Street and the Company's station at Aberdare :

In the county of Pembroke—

Pembroke Dock. Certain lands in the parish of St. Mary Pembroke in the borough of Pembroke lying on and adjoining the northern side of the Pembroke and Tenby Railway of the Company and abutting on the eastern side of Water Street.

For protection of London County Council. **37.** For the protection of the London County Council (in this section referred to as “ the council ”) the following provisions shall unless otherwise agreed in writing between the council and the Company have effect (that is to say) :—

(1) In the event of the Company pulling down the houses and buildings abutting on Praed Street which they are by this Act authorised to acquire the Company shall so soon as they shall commence such pulling down give to the council notice thereof in writing and shall if required by the council by notice in writing given to the Company within three

months of the receipt of such first-mentioned notice forthwith throw into the said street sufficient land to enable the council to widen the said street in front of the said houses and buildings to 60 feet and the council shall forthwith make up and form or cause to be made up and formed the widened portion as part of the said street and shall pay to the Company as compensation for the said land such an amount as may be agreed between the Company and the council or as may be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement. Provided that the basis of such compensation shall be the value of the said land so to be given up by the Company considered as vacant land in possession :

- (2) Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful for the Company to encroach upon any part of the surface of any street or footway in the county of London (in this section referred to as "the county") except so much of Stanley Street and Arthur Mews respectively as may be stopped up under the powers of this Act or without the consent of the council as regards any such street or footway except as aforesaid to erect or maintain any building or structure beyond the general line of building in any street part of a street place or row of houses in the county :
- (3) The Company shall not where any house or building in the county shall have been wholly or in part demolished by them leave any adjoining structures or any portion of a partly demolished structure in an unsightly condition for any longer period than is reasonably necessary :
- (4) The Company shall not affix or exhibit or permit to be affixed or exhibited upon any building or hoarding upon lands acquired by them under the powers of this Act in the county within view of any public street any placards or advertisements except such as shall have been approved in writing by the clerk or other officer of the council and if any such placard or advertisement be affixed or exhibited without such approval the council and their authorised officers may remove the same but this provision shall not prevent the Company from exhibiting placards giving information to the public as to the traffic of the Company :
- (5) Notwithstanding anything in this Act contained the Company shall not stop up any portion of Arthur Mews

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unless they shall stop up the same to the full extent to which they are by this Act authorised so to do :

- (6) If the Company shall stop up any public street or thoroughfare in the county they shall forthwith give notice thereof in writing to the council :
- (7) The provisions of the London Building Act 1894 and any Act or Acts amending the same shall subject to any special exemptions in favour of railway companies therein contained apply to the execution by the Company of any works or any lands in the county acquired by the Company under the powers of this Act :
- (8) The provisions of this section shall not apply to or in relation to any lands acquired under the powers of this Act or to any works executed thereon if and so long as such lands are vested in the Postmaster-General and the provisions of subsection (2) of this section shall not at any time apply to any house or buildings constructed by the Postmaster-General on such lands.

For protection of Paddington Borough Council.

38. If the Company shall at any time construct any works or buildings in under or upon the lands in the borough of Paddington which they are by this Act authorised to acquire the following provisions for the protection of the council of the metropolitan borough of Paddington (in this section hereinafter called "the council") shall apply and have effect :—

- (A) They shall construct and carry out such works or buildings in such manner as not to damage any sewer drain or pipe belonging to the council :
- (B) All tunnels arches and other works under any street or road within the said borough shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic but also any steam roller that the council may use for repairing the streets and the Company shall indemnify and make good to the council all costs and expenses that the council may incur or be put to by reason of any defect or insufficiency of strength in such tunnels arches or works or any neglect to properly and efficiently maintain the same as aforesaid or otherwise by reason of the said works :
- (c) The Company shall not deposit any subsoil or materials anywhere within the said borough so as to cause any nuisance or obstruction to any person using the roads or footways within the said borough :

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- (D) The Company shall make full compensation to the council for any damage to or subsidence of any sewer drain or work under the jurisdiction or control of the council in or under any street road or footway in under or adjacent to which any such works or buildings may be constructed by the Company which may be caused by or in consequence of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of such buildings or works or at any time thereafter :
- (E) The Company shall at all times during the progress of any such buildings or works provide all necessary hoardings and barriers the same to be well and sufficiently lighted and watched and every precaution taken for the due and proper protection of the public The Company shall be responsible for any damage whatever caused during or by the construction of the buildings or works :
- (F) Should it be found necessary to alter or interfere with any sewers drains gulleys air shafts or works connected therewith belonging to or under the control of the council fourteen days notice shall be given in writing to the council of such intention to alter or amend the same sewers drains gulleys air shafts matters or things and any such alteration or amendment shall be made with the reasonable approval and under the superintendence of the council :
- (G) The Company shall before stopping up and discontinuing and extinguishing any rights of way over any part of Stanley Street or Arthur Mews in the borough of Paddington in the county of London under the powers of this Act provide and pave to the reasonable satisfaction of the council and open for the use of the public a footway not less than the width of the present footway to connect the north-east end of Arthur Mews with Praed Street.

39. If and when the Company take or render useless any mains pipes syphons or other apparatus belonging to the Gas Light and Coke Company (in this section called "the gas company") in Stanley Street and the portion of Arthur Mews by this Act authorised to be stopped up and which are now used by the gas company for supplying gas to the street and portion of mews the Company shall pay to the gas company the value thereof and the same shall thereupon become the property of the Company and the Company shall also pay to the gas company their reasonable charge

For protection of Gas Light and Coke Company.

A.D. 1903. — of removing or altering any mains pipes syphons or other apparatus of the Company in immediate communication therewith which are rendered useless or which shall require to be altered.

Any difference arising between the Company and the gas company under this section shall be referred to and settled at the request of either party by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

For protection of
Bristol Gas
Company.

40. For the protection of the Bristol Gas Company the following provisions shall have effect (that is to say) :—

- (1) In this section the expression “the gas company” shall mean the Bristol Gas Company and the expression “the Company” shall mean the Company or the joint companies or either of them as the circumstances may require :
- (2) Nothing in this Act contained shall deprive the gas company of the powers and privileges conferred upon them by any Act or Acts of Parliament of laying down and maintaining as occasion may require and repairing renewing and altering any mains or pipes in and under any part of the streets or roads over or under which the railways authorised by this Act will be made or under any street road or court which may be temporarily stopped up during the construction of the works by this Act authorised :
- (3) At least fourteen days before commencing the execution of any works authorised by this Act or situate on any lands by this Act authorised to be acquired by the Company which will be situate over or in any way interfere with or affect any mains pipes or apparatus of the gas company the Company shall submit to the gas company plans sections and particulars showing the manner in which such gas mains pipes and apparatus are proposed to be dealt with and if within fourteen days from such submission the gas company disapprove of the said plans sections and particulars or make any further requirements in relation to the dealing with the same such works shall not be commenced until the said plans sections and particulars have been agreed or settled by arbitration Provided that if the gas company do not within fourteen days after such submission signify their approval or disapproval or their requirements in relation thereto they shall be deemed to have approved of such plans sections and particulars and such mains pipes and apparatus shall unless otherwise agreed be dealt with only in accordance with such plans sections and particulars

and all works involving the interference with or affecting the same shall be executed under the superintendence and to the reasonable satisfaction of the engineer of the gas company :

- (4) The engineer of the gas company shall if the gas company so think fit have the sole direction and management of and may at the reasonable cost in all things of the Company execute all such works as may be reasonably necessary for the diversion shoring up or supporting raising refixing or otherwise altering the position of and restoring and protecting any such mains pipes or apparatus of the gas company which it may be necessary to divert shore up support raise refix alter restore or protect by reason of the execution of such works and for preventing any interruption to the supply of gas by the gas company or any obstruction or increased expense to the gas company in the repair renewal or inspection of such mains pipes or works :
- (5) All costs charges and expenses reasonably incurred by the gas company or their engineer under the provisions of this section including the costs charges and expenses of and in relation to the superintendence or watching by the gas company or their engineer or officers of any works of the Company by which any mains pipes or apparatus of the gas company may be interfered with or affected shall be paid by the Company to the gas company on demand :
- (6) If any interruption whatsoever in the supply of gas by the gas company or any loss of gas shall be in any way occasioned or sustained by any act or omission of the Company or by the acts of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the powers of this Act the Company shall pay to the gas company the value of the gas so lost such sum or sums of money to be recovered by the gas company in any court of competent jurisdiction and the Company shall also be responsible for and make good to the gas company all costs losses damages and expenses which may be occasioned to the gas company (including injury and loss by explosion) through or by reason of or consequent on any such act or omission of the Company or of any of their contractors agents workmen or servants or any of the persons in their employ or in the employ of their contractors or others and the Company shall effectually indemnify and hold harmless the gas company from all

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claims and demands upon or against them by reason of any such act or omission :

- (7) If by reason of the exercise of the powers of this Act any increased length of gas mains or pipes be rendered necessary the same shall be provided and laid by the gas company at the reasonable cost of the Company and if the gas company at any time by like reason or by reason of the existence of any work by this Act authorised or situate on any lands by this Act authorised to be acquired by the Company incur any additional cost in laying down repairing renewing altering or inspecting any gas main or pipe such additional cost shall be repaid to the gas company by the Company on demand :
- (8) Whenever by the appropriation or destruction of property by this Act authorised to be acquired by the Company or by the stopping up of any street road or footpath authorised by this Act to be stopped up any gas mains or pipes or any apparatus connected therewith of the gas company (except pipes inside such property) shall be rendered unnecessary the Company shall pay to the gas company the cost of an equivalent length of gas main or pipe and of such apparatus and of laying and fixing the same down and of the works required for the discontinuance of the gas mains pipes and apparatus rendered unnecessary and the gas mains pipes and apparatus so rendered unnecessary shall become the property of the Company :
- (9) The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 incorporated with this Act shall (subject to the provisions of this section) extend and apply as well to and in the case of any new footpath made or effected in pursuance of the provisions of this Act as to and in the case of the railways by this Act authorised :
- (10) The new footpath to be constructed along the south-eastern side of the main line of the Company between a point 11 chains or thereabouts south-west of the junction of the Bristol and Portishead Railway with the said main line and a point in Bridgwater Road 7 chains or thereabouts south-west of the bridge carrying that road over the said main line shall be deemed to be a street within the meaning of the Gasworks Clauses Act 1847 :
- (11) If any difference shall arise between the Company and the gas company touching this section or anything to be

done or not to be done thereunder such difference shall be determined by an engineer to be appointed (unless otherwise agreed on between the parties) on the application of either party by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration shall extend and apply to the determination of such difference. A.D. 1903.

41. For the protection of the Bristol Waterworks Company (in this section called “the water company”) the following provisions shall have effect (that is to say):— For protection of
Bristol
Waterworks
Company.

(1) At least fourteen days before the commencement of any work in pursuance of the powers of this Act which may in any way interfere with or affect or be situate over any main pipe or work of the water company or any private service pipe of any person supplied with water by the water company a notice in writing of the intention of the Company to execute such work and a plan and section (showing the nature of the work proposed) shall be submitted to the water company together with a description of the mode of executing such work and of protecting such mains pipes or works and if within fourteen days from such submission the water company disapprove of the said plans sections or particulars or make any further requirements such work shall not be commenced until the plans sections and particulars have been agreed or settled by arbitration. Provided that if the water company do not within fourteen days after such submission signify their approval or disapproval thereof or their requirements in relation thereto they shall be deemed to have approved thereof. Every such work shall be constructed in accordance with the plan and section and particulars approved agreed or settled as aforesaid and shall (so far as it may interfere with or affect or be situate over such main pipe work or private service pipe or within three feet of such main pipe or work) be executed under the superintendence and to the reasonable satisfaction of and in such manner as shall reasonably be required by the engineer of the water company:

(2) Any mains or pipes of the water company which shall be raised diverted sunk or altered shall be relaid at such depth as may be reasonably required by the water company for protecting such pipes from frost accident or injury and wherever the railway will be constructed in any street over

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any mains or pipes of the water company the same shall be laid in split tubes or protective casings or otherwise protected as the engineer of the water company shall direct :

- (3) The engineer of the water company shall if the water company so think fit have the exclusive direction and management of and may at the reasonable cost in all things of the Company execute all such works as may be reasonably necessary for the diversion removing raising refixing sinking or otherwise altering the position of restoring and protecting any mains pipes or other works of the water company or any private service pipe of any person supplied with water by the water company which it may be necessary or expedient to divert remove raise refix sink alter restore or protect by reason of the execution by the Company of any of the powers of this Act and for preventing any interruption to the supply of water by the water company or any obstruction or increased expense to the water company in the repair or renewal of such mains pipes or works :
- (4) All costs charges and expenses reasonably incurred by the water company or their engineer under the provisions of this Act including the costs charges and expenses of and in relation to the superintendence or watching by the water company or their engineer or officers of any works of the Company authorised by this Act by which any water apparatus of the water company may be interfered with or affected shall be paid by the Company to the water company on demand :
- (5) If any interruption whatsoever in the supply of water by the water company shall be occasioned by the Company or by the acts of any of their contractors agents workmen or servants or any person in the employ of them or any of them either during the construction or subsequent maintenance of the work by this Act authorised the Company shall indemnify and compensate the water company in respect of all damage or loss which they may sustain by reason or in consequence of such interruption :
- (6) If by reason of the exercise of the powers of this Act any increased length of water mains or pipes or any additional valves or apparatus be rendered necessary the same shall be provided and laid by the water company at the reasonable cost of the Company and if the water company at any time by like reason or by reason of the existence in any street of any works by this Act authorised incur any additional cost

in laying down repairing or altering any water main or pipe or valve or apparatus such additional cost shall be repaid to the water company by the Company :

- (7) In case the water company at any future time require to lay repair inspect or renew any main or pipe in any street on or under which any railway is constructed or is in course of construction under the powers of this Act the Company shall free of charge give to the water company all reasonable facilities for carrying out the work :
- (8) Whenever by the appropriation or destruction of property by this Act authorised to be acquired or by the stopping up of any street authorised by this Act to be stopped up any water mains or pipes apparatus or appliances connected therewith of the water company shall be rendered unnecessary the Company shall pay to the water company the cost of an equivalent length of water main or pipe and of such apparatus or appliances and of laying the same down and of the works required for the discontinuance of the water mains or pipes apparatus or appliances rendered unnecessary and the water mains or pipes apparatus or appliances so rendered unnecessary shall become the property of the Company :
- (9) Subject to the provisions of this section sections 18 to 23 of the Railways Clauses Consolidation Act 1845 incorporated with this Act shall extend and apply as well to and in the case of any alteration or diversion of a street in pursuance of the provisions of this Act as to and in the case of the railways by this Act authorised :
- (10) Nothing in this Act contained shall deprive the water company of the powers and privileges conferred upon them by any Act or Acts of Parliament of laying down and maintaining as occasion may require and repairing renewing and altering any mains or pipes in and under any part of the street upon over or under which the railways authorised by this Act will be made or under any street which may be temporarily stopped up during the construction of the works by this Act authorised but the water company shall restore and make good any work by this Act authorised which may be interfered with by them in the exercise of such powers Provided that the water company shall not except where and so far as reasonably necessary lay any new main or pipe in any street longitudinally beneath and along the line of any railway by this Act authorised :

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(11) In and for the purposes of this section the word "street" shall have the meaning assigned to it by the Waterworks Clauses Act 1847 :

(12) If any difference arise between the Company and the water company touching this section or anything to be done or not to be done or any moneys to be paid thereunder such difference shall be determined by an engineer to be appointed (unless otherwise agreed on between the parties) on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration shall extend and apply to the determination of such difference.

For protection of Caldicot levels.

42. For the protection of the Monmouthshire Commissioners of Sewers (hereinafter called "the commissioners") the following provisions shall have effect unless otherwise agreed between the commissioners and the Company (that is to say) :—

(1) The Company shall if they construct any works for the widening of their railway upon the lands between Newport and Undy by this Act authorised to be acquired by the Company so construct such works that the same shall be carried over the Reens next hereinafter mentioned by arches or bridges of a height and span not less than the heights and spans next hereinafter mentioned in connection with such Reens respectively (that is to say) :—

Parish.	Reen.	Height.	Span.
Christchurch	Liswerry Pill Reen	5 feet 7 inches	10 feet.
	Ellen Reen	5 feet	3 feet.
	Monk's Ditch Pill Reen	5 feet 6 inches	16 feet.
Llauwern	Barn Reen	3 feet 6 inches	3 feet 6 inches.
	Middle Stank Reen	4 feet	4 feet.
Bishton	Elm Wall Reen	2 feet 6 inches	2 feet 6 inches.
	Little Reen	7 feet	3 feet 3 inches.
	Village Reen	4 feet	5 feet 5 inches.
	Ridings Reen	5 feet	6 feet.
	East Bishton Reen	5 feet	9 feet.
Llandavenny	Wilcrick Moor Reen	5 feet	5 feet 6 inches.
	Waun Deilod Reen	7 feet	7 feet 6 inches.
Magor	Blackwall East Reen	2 feet 6 inches	2 feet 6 inches.
	Whitewall Winter Sewer	5 feet 6 inches	4 feet 9 inches.
	Mill Reen	4 feet 6 inches	11 feet.
Undy	West Mead Reen	4 feet 10 inches	6 feet.

(2) All works which the Company are by this section required to execute shall be maintained and repaired by and at the expense of the Company to the reasonable satisfaction of the Commissioners.

43.—(1) Notwithstanding anything contained in subsection (1) of section 20 of the Great Western Railway Act 1899 with respect to the Deviation (No. 2) by that Act authorised or shown on the plan signed by James Charles Inglis and William Lunn as therein mentioned the Company may construct a portion of the said deviation where it crosses Langport Common Moor and Langport Moor on an embankment instead of on a viaduct as shown by the plan marked “Amended plan Deviation No. 2 authorised by Great Western Railway Act 1899” and signed in duplicate by the said James Charles Inglis and William Lunn Provided that before constructing the said embankment the Company shall divert in manner shown upon the said plan the rheen which is crossed by the centre line of the railway at the point marked 3 furlongs on the said plan.

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Provisions as
to Langport
Common.

(2) Notwithstanding anything contained in section 28 of the said Act the following provisions shall have effect with respect to the powers conferred upon the Company by the said Act in relation to the construction of the said Deviation (No. 2) across Langport Common Moor and Langport Moor (in this section called “the said common lands”) (that is to say) :—

(A) Subject to the provisions of this section the Company may acquire so much and no more of the said common lands as is delineated and coloured plain yellow and yellow hatched with red on the plan marked A signed by James Charles Inglis on behalf of the Company and by Francis Meade Henry Pittard and Henry Charles Norton on behalf of the lords of the manor and the commoners and having an area in the aggregate of two acres one rood and thirty-eight perches Provided that the Company shall acquire only an easement or right of constructing and maintaining a viaduct for carrying the said Deviation (No. 2) on the portions of the said common lands which are coloured yellow hatched with red on the said plan marked A :

(B) Before entering upon any portion of the said common lands and in lieu of paying compensation therefor the Company shall add thereto the lands delineated and coloured plain green on the said plan marked A and having an area of three acres one rood and twenty-one perches and the said lands shall be thrown into and form part of the said common lands and shall be subject to the common and other rights now enjoyed over or in respect of the said portions of common lands :

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(c) The Company shall not construct on any part of the lands hatched red on the said plan marked A any other work than a viaduct for carrying the said Deviation (No. 2) across the said lands with all necessary and proper piers and supports and the land under the arches of the viaduct shall be fenced only on the north side so as to leave the arches open to the said common land and to cattle feeding thereon. Provided always that during the construction of the said deviation the Company shall be entitled to enter upon use and occupy the said lands hatched red for the purposes of such construction as fully and freely as if they had acquired the said lands free from any restrictions as to the user thereof and shall also be entitled to enter thereon for the purpose of maintaining the said viaduct. Provided always that nothing herein contained shall be deemed or construed to give the Company any right of way at any time over any part of the said moors except over such part as shall be actually acquired by the Company for the purposes of their railway nor over the approach road to the said moors called Moor Lane and shown on the plan marked B signed by James Charles Inglis on behalf of the Company and by Francis Meade Henry Pittard and Henry Charles Norton on behalf of the lords of the manor and the commoners. And the Company shall construct all such works as are provided for by the 68th section of the Railways Clauses Consolidation Act 1845 which may be necessary for the protection of the rights and property of the lords of the manor and commoners in the said moors :

(d) The Company shall also concurrently with the construction of the said deviation widen and improve the approach road to Langport Moor from North Street in accordance with the said plan marked "B" and shall provide a sufficient number of inspection chambers in such positions as may be agreed between the Company and the Moor Reeves. The works provided for by this subsection shall be carried out to the reasonable satisfaction of the Moor Reeves at the cost of the Company but after they have been so carried out the Company shall not be in any way responsible for the maintenance thereof. Any difference which may arise between the Company and the Moor Reeves under this subsection shall unless otherwise agreed be determined by arbitration in manner provided by the Arbitration Act 1889.

44. Subject to the provisions of this Act the two companies or either of them with as between themselves the consent of the other may enter upon take use and hold for the purposes of the two companies or either of them and for providing increased accommodation the lands hereinafter mentioned or referred to delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

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Power to two companies to acquire additional lands.

In the county of Salop—

Certain lands in the parish of Holy Cross and St. Giles in the borough of Shrewsbury lying on and adjoining the eastern side of the Shrewsbury and Hereford Railway of the two companies and abutting on the northern side of Abbey Forgate. Shrewsbury.

45. Subject to the provisions of this Act the joint companies or either of them with as between themselves the consent of the other may make and execute in the lines and according to the levels shown on the deposited plans and sections relating thereto the widening alteration and improvement of railway hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for that purpose (that is to say):—

Power to joint companies to execute works &c.

A widening alteration and improvement 3 miles 3 furlongs and 6·44 chains in length wholly in the county of Gloucester of the Bristol Port and Pier Railway of the joint companies commencing in the parish and city and county borough of Bristol at a point on that railway 12 chains or thereabouts north-west of the level crossing by that railway of Gloucester Road Avonmouth and terminating in the parish of Westbury-upon-Trym at a point on that railway 4 chains or thereabouts north of the junction of the Clifton Extension Railway of the joint companies with the said railway at Sneyd Park Junction.

46. The widening alteration and improvement of the Bristol Port and Pier Railway by this Act authorised shall for the purposes of maximum rates and charges for merchandise traffic and for all other purposes be deemed to be part of the said railway.

Widening &c. of joint railway to form part of railway.

47. For the protection of the Gloucestershire County Council (in this section called “the council”) the following provisions shall have effect with respect to the widening alteration and improvement

For protection of Gloucestershire County Council.

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of the Bristol Port and Pier Railway by this Act authorised unless otherwise agreed in writing between the council and the joint companies (that is to say) :—

- (1) The bridge for carrying the widened portion of the railway over the road numbered on the deposited plans 27 in the parish of Shirehampton shall be constructed with a headway of not less than the maximum headway of the existing bridge and with a span of not less than twenty feet :
- (2) Nothing in this Act shall prejudice or affect the rights of the council in respect of the said road under section 51 of the Railways Clauses Consolidation Act 1845.

For protection of corporation of Bristol.

48. For the protection of the lord mayor aldermen and burgesses of the city of Bristol (in this section called “the corporation”) the following provisions shall unless otherwise agreed upon between the Company and the corporation have effect (that is to say) :—

- (1) The Company in altering and diverting so much of the road known as South Lane in the parish and city and county borough of Bristol (in this section called “the city”) as lies between the bridge carrying that road over the Bristol and Portishead Railway of the Company and a point 8 chains or thereabouts south-west of that bridge shall make the new portion of the said road not less than 25 feet in width and shall metal and make good such portion to the reasonable satisfaction of the engineer of the corporation and shall not stop up nor cause to be discontinued as a road so much of the existing road as will be rendered unnecessary by the new portion of road unless and until such new portion shall have been made as aforesaid and opened for public use :
- (2) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall not stop up nor discontinue any part of the occupation road and footpath in the city which are carried over the main line of the Company by means of a bridge 22 chains or thereabouts south-west of the junction of the said Bristol and Portishead Railway with the said main line unless and until they have completed and opened for public use a new footpath from the Bridgwater Road to South Lane to be carried over the said main line by means of a footbridge and to be erected at a point south-west of the existing bridge

the position of the new footpath and footbridge and the mode of construction thereof respectively to be reasonably approved by the corporation : A.D. 1903.
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- (3) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall not enter upon take use nor appropriate the lands at Stapleton Road in the city numbered 3 and 6 respectively on the deposited plans and in the deposited books of reference relating thereto :
- (4) The Company shall give up to the corporation free of cost so much of the land at Stapleton Road aforesaid numbered 2 on the said deposited plans and books of reference as is coloured pink on a plan signed by James Charles Inglis on behalf of the Company and by Edmund Judkin Taylor the town clerk of the city of Bristol on behalf of the corporation to enable the corporation to widen Fox Lane situate on the south side of the said land :
- (5) If the Company acquire the land at Stapleton Road aforesaid numbered 5 on the said deposited plans and books of reference they shall give up to the corporation free of cost so much of the said land as is coloured blue on the said plan signed by the said James Charles Inglis and Edmund Judkin Taylor to enable the corporation to widen Warwick Road :
- (6) The Company shall not interfere with the sewer and manholes situate in the land at Stapleton Road aforesaid numbered 4 on the deposited plans and books of reference and the corporation shall have free access to the said sewer and manholes at all reasonable times :
- (7) If the Company acquire the land at Stapleton Road aforesaid numbered 1 on the deposited plans and books of reference they shall not execute any works therein which would diminish the existing width of the River Frome or would interfere with the free flow of the waters thereof :
- (8) If the Company construct a bridge over the River Frome in connection with the lands at Stapleton Road aforesaid acquired under the powers of this Act the said bridge shall be constructed in accordance with plans and sections previously reasonably approved by and to the reasonable satisfaction of the engineer of the corporation and so as not to interfere with free access along the land of the corporation on the north bank of the said river If the

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corporation shall at any time desire that the said bridge shall be available for public use for the purpose of affording access to any public footway which may be constructed on the north side of the said river the Company shall permit the said bridge and the road therefrom to Warwick Road to be used by the public for the purpose aforesaid and the corporation shall pay to the Company the cost of constructing a footpath alongside the said bridge and road and access therefrom to the footway which may be constructed by the corporation as aforesaid and thereafter the corporation shall pay to the Company the cost of keeping the said footpath in repair :

- (9) The joint companies shall not interfere with the existing junctions between the joint companies' Bristol Port and Pier Railway and the railways of the corporation at Avonmouth Dock and the sidings connected therewith nor with the water main of the corporation laid under the said railway opposite Green Lane except in accordance with plans and sections previously reasonably approved by and to the reasonable satisfaction of the engineer of the corporation :
- (10) In the event of the existing junctions at Avonmouth Dock having to be interfered with they shall be reconstructed to the reasonable satisfaction of the engineer to the corporation at the cost of the joint companies but nothing in this section shall interfere with the agreements between the corporation and the joint companies dated the 16th day of February 1898 the 22nd day of May 1901 and the 3rd day of September 1902 :
- (11) If the corporation shall incur any additional cost in the construction of the Railway (Work No. 2) authorised by the Bristol Corporation Act 1902 by reason of the widening alteration and improvement of the said Bristol Port and Pier Railway by this Act authorised such additional cost shall be paid to the corporation by the joint companies :
- (12) The corporation and their servants and workmen shall have the same rights of way over the Bristol Port and Pier Railway when widened altered and improved under the powers of this Act as they at present have over the existing railway :
- (13) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the joint companies shall not without the consent of the corporation enter upon take or use the land numbered on the deposited plans and

books of reference 9 in the parish of Westbury-upon-Trym in the county of Gloucester : A.D. 1903.

- (14) The joint companies shall not construct in the River Avon any works in connection with the widening alteration and improvement of the said Bristol Port and Pier Railway by this Act authorised except in accordance with plans and sections previously reasonably approved by and to the reasonable satisfaction of the engineer of the corporation :
- (15) If the corporation so require the joint companies shall sell to the corporation at a pro rata price so much of the lands which may be acquired by them and numbered on the deposited plans and books of reference 5 in the parish of Westbury-on-Trym as may be necessary to enable the corporation to widen to 60 feet the road and towpath bounding the west and north sides of the said land :
- (16) If any difference shall arise between the corporation and the Company or the joint companies (as the case may be) under this section such difference shall be settled by an engineer to be appointed (unless otherwise agreed upon) upon the application of either party by the President of the Institution of Civil Engineers.

49. For the protection of the Barton Regis Rural District Council (in this section called "the council ") the following provisions shall have effect with respect to the widening alteration and improvement of the Bristol Port and Pier Railway by this Act authorised unless otherwise agreed in writing between the council and the joint companies (that is to say) :—

For protection of Barton Regis Rural District Council.

- (1) The council may and shall as soon as they conveniently can construct in accordance with the plan and section signed by Hubert Thomas Henley Lancaster on behalf of the council and by James Charles Inglis on behalf of the joint companies the sewers and manholes shown in red on the said plan and section in substitution for the existing sewers shown by dotted blue lines on the said plan and on the completion of the said works the joint companies shall repay to the council the cost thereof less the sum of one hundred pounds :
- (2) The construction of the said sewers so far as they will be situate on the lands or property of the joint companies shall be constructed under the supervision and to the reasonable satisfaction of the engineer of the joint companies :

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- (3) The joint companies shall extend the subway by which the footpath numbered on the deposited plans 23 in the parish of Shirehampton passes under their existing railway throughout the entire width of the said railway as widened under the powers of this Act :
- (4) For the purpose of maintaining so much of the sewer which crosses under the said railway at or near the eastern side of the level crossing of the road numbered on the deposited plans 44 in the parish of Shirehampton which will be situate under the widened portion of the railway the joint companies shall relay the said portion of the sewer in a straight line and at an even gradient and shall encase the same in six inches of cement concrete and shall construct a proper manhole at each end of the said portion of the sewer :
- (5) If in the execution of the said works the joint companies shall find it necessary to interfere with any part of the footpath shown on the deposited plans and passing through the properties numbered thereon 52 and 53 in the parish of Shirehampton and 2 in the parish of Henbury they shall divert the said footpath along the northern boundary of the said railway as widened :
- (6) The joint companies shall divert the footpath numbered on the deposited plans 16 in the city and county borough of Bristol which now crosses the said railway on the level and shall carry the same under and along the southern abutment of the bridge carrying the said railway over the River Trym and the diverted footpath shall be at least six feet wide and shall have a headway under the bridge of at least seven feet six inches :
- (7) If any difference shall arise between the council and the joint companies under this section the same shall unless otherwise agreed between the parties be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

Powers to
joint com-
panies as to
bridle path.

50.—(1) Subject to the provisions of this Act the joint companies may stop up and discontinue the bridle path in the parish of Newland in the county of Gloucester along the western side of the Severn and Wye Railway of the joint companies between a point 14 chains or thereabouts north of Whitecroft Station and 1 chain or thereabouts south of Parkend Station and in lieu thereof they may make in the line shown on the deposited plans relating thereto a new bridle path between the first-mentioned

point and a point in the road on the western side of the said railway leading from Whitecroft to Parkend $15\frac{1}{2}$ chains or thereabouts from the junction of that road with the road leading from Bream to Blakeney. A.D. 1903.

(2) Section 8 of the Severn and Wye Railway and Canal Act 1869 is hereby repealed.

51. Notwithstanding anything in this Act contained the following provisions for the protection of Philip Napier Miles (in this section called "the owner") shall unless otherwise agreed between the joint companies and the owner apply and have effect (that is to say):— For protection of Philip Napier Miles.

- (1) The joint companies shall not purchase or acquire any lands of the owner other than may be necessary for the widening of the Bristol Port and Pier Railway by this Act authorised and for additional siding accommodation at Shirehampton and Sea Mills Stations and the additional siding accommodation at Sea Mills Station shall be made on the south eastern side of the River Trym :
- (2) In carrying out the said widening the joint companies shall make the occupation road numbered on the deposited plans of the said widening 9 and 10 in the parish of Henbury where it passes under the said railway of a width of not less than 36 feet and of a headway not less than 15 feet and the owner shall repay to the joint companies the difference between the cost of so doing and the cost which the joint companies would have incurred in widening for the purposes of the said widening of railway the existing bridges over the said occupation road and the occupation road numbered on the deposited plans 5 in the said parish. On the completion of the said widening of the said occupation road the joint companies shall be at liberty to stop and discontinue the occupation road numbered 5 as aforesaid between the boundaries of the joint companies' property after providing adequate drainage under the portion of road so stopped up for the lands of the owner on the north side of the said railway :
- (3) The joint companies in carrying out the widening of the said railway shall not in any way lessen the existing waterway into the dock north of and near to Sea Mills Station :
- (4) Any dispute or difference which may arise between the joint companies and the owner with reference to the provisions of this section or in any way arising thereout or as

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to any works to be carried out in pursuance thereof shall be referred to a single arbitrator in accordance with and subject to the provisions of the Arbitration Act 1889.

As to vesting of site and soil of portions of roads &c. stopped up.

52. Subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway the site and soil of the portions of roads streets footpaths and highways stopped up and discontinued under the authority of this Act and the fee simple and inheritance thereof shall (except where by this Act otherwise provided) if the Company or the joint companies (as the case may be) are or if and when under the powers of this Act or of any other Act relating to the Company or the joint companies (as the case may be) already passed they become the owners of the land on both sides thereof be wholly and absolutely vested in the Company or the joint companies (as the case may be) and they may appropriate the same to the purposes of their undertaking.

Extinguishment of rights of way.

53. All public rights of way over or along any road or footpath which shall under the provisions of this Act be diverted stopped up or discontinued shall be extinguished as from the date of such diversion stopping up or discontinuance but any such road or footpath shall not be stopped up or discontinued unless and until the new roads and footpaths which are by this Act authorised to be respectively substituted therefor are completed to the satisfaction of two justices. Provided that the Company or the joint companies (as the case may be) shall before applying to the said justices for their certificate that any road is completed to their satisfaction give seven days' notice in writing of their intention to apply for the same to the road authority of the district in which the road or footpath is situate.

Provision as to repair of new roads and footpaths.

54. The new roads streets footpaths and highways to be made under the authority of this Act (other than roads streets footpaths or highways made or diverted for the purposes of any new railway or deviation of a railway authorised by this Act and in the case of other roads streets or footpaths except the stone iron or other structure of any bridge carrying the same over or under any such railway or deviation which structure except where otherwise expressly provided by this Act shall be repaired and maintained by and at the expense of the Company) shall unless otherwise agreed or otherwise specially provided by this Act when made and completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portions of the same roads streets and footpaths now devolves.

55. The Company or the joint companies (as the case may be) may enter into and carry into effect agreements with the parties having the charge management or control of the roads streets footpaths or highways or any of them portions whereof shall under the provisions of this Act be stopped up with reference to the construction or contribution towards the cost of any new road street footpath or highway to be substituted therefor and with reference to any other matters relating thereto and if so agreed the Company or the joint companies (as the case may be) may delegate to such parties as aforesaid the power of constructing all or any of such new roads streets footpaths or highways in which they may be interested except the stone iron or other structure of any bridge over or under any railway.

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Power to make agreements as to construction or contribution towards cost of new roads.

56. The Company or the joint companies (as the case may be) may in constructing the widening and lengthening of bridges and the new and altered roads streets footpaths and other similar works by this Act authorised deviate from the lines thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of the new roads streets and other similar works shown on the deposited sections to any extent not exceeding three feet or (if the work be situate in any town village street or land continuously built upon) two feet but not so as to increase the rate of inclination of any new road or street as shown on the said sections.

Power to deviate in construction of new roads footpaths &c.

57. The powers of this Act for the compulsory purchase of lands by the Company or by the two companies or by the joint companies (as the case may be) shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

58. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or to the two companies or the joint companies (as the case may be) any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act to be executed by them respectively in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to owners to grant easements &c.

59. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the

Owners may be required to sell parts

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only of cer-
tain lands
and build-
ings.

powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in Part I. of the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties” :

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

(3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

(4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to

purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

The provisions of this section shall extend and apply to the joint companies in respect of the properties described or referred to in Part II. of the said Schedule as if those companies and Part II.

A.D. 1903. of the said Schedule had been referred to in this section instead of
— the Company and Part I. of the said Schedule.

Power to acquire easements for constructing tunnel on railways &c.

60. And whereas the Railway No. 7 and Deviation No. 2 are shown on the deposited plans and sections as intended to be constructed in tunnel through or under the properties referred to in the Second Schedule to this Act at a depth of forty feet and upwards between the crown of the tunnel and the surface of the ground Therefore the Company may purchase and acquire an easement or right of constructing and using those railways and deviation through or under those properties without being obliged to purchase the land over such railways or deviation or any houses buildings manufactories or premises thereon respectively unless the jury or the arbitrators or their umpire to whom the question of disputed compensation shall be submitted shall determine that such right or easement cannot be acquired or used by the Company without material detriment to such properties Provided that nothing in this section contained shall apply to any of the said properties the surface of which is at a less height than forty feet above the crown of the said tunnel as the same shall be constructed Provided also that nothing in this section contained nor any dealing with any of the said properties in pursuance thereof shall relieve the Company from liability to compensation under section 68 of the Lands Clauses Consolidation Act 1845 in respect of any properties through or under which the Company may purchase or acquire an easement or right of constructing and using such tunnel.

Extension of time for compulsory purchase of lands.

61. The powers for the compulsory purchase of lands for the purposes of Railways Nos. 3 and 3A authorised by the Great Western Railway (New Works) Act 1898 as extended by the Great Western Railway Act 1901 are hereby extended and may be exercised by the Company during a period of two years from the twelfth day of August one thousand nine hundred and three and the powers for the compulsory purchase of lands for the purposes of the harbour works and railways described in and authorised by section 6 of the first-mentioned Act are hereby extended and may be exercised by the Company during a period of three years from the twelfth day of August one thousand nine hundred and three and after the expiration of those periods respectively the said powers shall cease.

Extension of time for completion of works.

62. The time limited by the Great Western Railway (New Works) Act 1898 as extended by the Great Western Railway Act 1901 for the completion of the Railways Nos. 3 and 3A authorised by the said Act of 1898 is hereby further extended for a period of three years from the twelfth day of August 1906 and the time limited

by the said Act of 1898 for the completion of the harbour works and railways described in and authorised by section 6 of that Act is hereby extended for a period of five years from the twelfth day of August 1908 and sections 30 and 31 of the said Act of 1898 shall be read and construed as if the times respectively limited by this Act for the completion of the said railways and works respectively had been the times limited by the Act of 1898 for the completion thereof.

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If the said railways and works are not completed within the periods limited by this Act with reference thereto respectively then on the expiration of those periods the powers by the said Act of 1898 as extended by the said Act of 1901 and this Act respectively granted to the Company for making and completing the same shall cease except as to so much thereof respectively as shall be then completed.

63.—(1) The Company (which expression shall in this section be deemed to mean the Company the two companies or the joint companies or the Fishguard Company as the case may be in respect of the powers conferred upon the Company the two companies and the joint companies and the Fishguard Company respectively) shall not under the powers of this Act or under the powers of any former Act extended by this Act purchase or acquire in any metropolitan borough or in the city of London (which boroughs and city are in this section referred to as “London”) twenty or more houses or in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December next before the passing of this Act or of the former Act by which the purchase or acquisition was originally authorised were or have been since that day or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

Restrictions
on displacing
persons of
labouring
class.

- (A) Shall have obtained the approval in the case of London of the Secretary of State for the Home Department or in any other case of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the said Secretary of State or the Local Government Board (as the case may be) shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

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(B) Shall have given security to the satisfaction of the said Secretary of State or the Local Government Board (as the case may be) for the carrying out of the scheme.

(2) The approval of the said Secretary of State or the Local Government Board (as the case may be) to any scheme under this section may be given either absolutely or conditionally and after the said Secretary of State or the Local Government Board (as the case may be) has or have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the said Secretary of State or the Local Government Board (as the case may be) may dispense with the last-mentioned requirement subject to such conditions (if any) as he or they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the said Secretary of State or the Local Government Board (as the case may be) may have approved of any scheme or of any modifications of any scheme or subject to which he or they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the said Secretary of State or the Local Government Board (as the case may be) out of the High Court.

(5) If the Company acquire or appropriate any house or site for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house or site which penalty shall be recoverable by the said Secretary of State or the Local Government Board (as the case may be) by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of such purchase sections 176 (Regulations as to purchase

of land) and 297 (As to Provisional Orders) of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act and as if in the case of a scheme approved by the Secretary of State the Secretary of State were substituted for the Local Government Board.

A.D. 1903.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of such scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the said Secretary of State or the Local Government Board (as the case may be) may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he or they may see fit.

(8) All buildings erected or provided by the Company in London for the purpose of any scheme under this section shall be subject to the provisions of the London Building Act 1894 (Local) and any other Act or Acts relating to buildings in the county of London.

(9) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of sections 155 and 156 of the same Act shall apply to buildings outside London erected or provided by the Company for the purpose of any scheme under this section.

(10) The said Secretary of State or the Local Government Board (as the case may be) may direct any inquiries to be held by any persons appointed by him or them as inspectors which he or

A.D. 1903. — they may deem necessary in relation to any scheme under this section or to the carrying out thereof and may appoint or employ inspectors for the purposes of any such inquiry and the inspectors so appointed or employed shall for the purposes of any such inquiry have all such powers as inspectors of the Local Government Board have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(11) The Company shall pay to the said Secretary of State any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a reasonable sum to be fixed by the said Secretary of State for the services of such inspector.

(12) The Company shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(13) Any houses or sites of houses purchased or acquired by the Company for or in connection with any of the purposes of this Act or of any former Act the powers of which are extended by this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act or of such former Act (as the case may be) and for which houses no substitutes have been or are directed to be provided by any scheme approved by the said Secretary of State or the Local Government Board (as the case may be) under any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the said Secretary of State or the Local Government Board (as the case may be) is or are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the said Secretary of State or the Local Government Board (as the case may be) they might have been sufficient to accommodate.

(14) For the purposes of this section—

A.D. 1903.

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them;

The expression “house” means any house or part of a house occupied as a separate dwelling.

(15) In the exercise of the powers by this Act conferred upon the corporation of Birmingham and the Risca Urban District Council for the purchase of lands the provisions of this section shall apply to the said corporation and council as if they had been named throughout this section in addition to the Company.

64. The undertaking of the Ely Valley Company shall subject to the contracts obligations debts and liabilities of that company including land rentcharges if any be amalgamated with and form part of the undertaking of the Company subject nevertheless to the provisions of this Act and such amalgamation shall take effect as on and from the date of amalgamation and as on and from that date the Ely Valley Company are hereby dissolved except for the purpose of winding up their affairs.

Ely Valley Company amalgamated with Company.

65. After the date of amalgamation of the Ely Valley Company the Company shall calculate the maximum rates chargeable in respect of the railways of the Ely Valley Company as if those railways had formed part of the undertaking of the Company at the date of the passing of the Great Western Railway (Rates and Charges) Order Confirmation Act 1891 and Scale III. of Part I. of the Schedule of maximum rates and charges confirmed by the said Act shall be and continue applicable to the Ely Valley Railway.

Rates and charges on Ely Valley railways.

66. The Ely Valley Company shall be entitled to all their revenues up to and inclusive of the date of amalgamation and shall discharge and relieve the Company of all their contracts obligations debts and liabilities not chargeable to capital account which shall have accrued up to the date of amalgamation. Provided always that the Company shall not be liable to recoup the Ely Valley Company the debit balance on capital account.

Ely Valley Company to receive revenue and pay debts up to date of amalgamation.

67. As from the date of amalgamation the stock of the Ely Valley Company held by or on behalf of the Company and specified

Cancelling shares of Ely Valley Com-

A.D. 1903.

pany held
by Company.

Stocks &c.
of Ely Valley
Company to
be exchanged
for stocks of
Company.

in the third column of the Third Schedule to this Act shall be and the same is hereby cancelled.

68. As on and from the date of amalgamation the several holders of the amounts mentioned in the fourth column of the Third Schedule to this Act of the stocks and securities of the Ely Valley Company described or referred to in the first column of the said Schedule shall in lieu of and exchange for the stocks or securities held by them respectively become and be the holders of the consolidated guaranteed stock or debenture stock (as the case may be) of the Company specified in the fifth column of the said Schedule as intended to be issued to the holders of the amounts mentioned in the said fourth column and the holders of each class of the stocks and securities of the Ely Valley Company shall be entitled to the stock so to be issued to such class in the proportions of the amounts of the existing stocks or securities held by them respectively.

Fractional
parts of a
pound of
stock.

69. Notwithstanding anything in this Act contained no person shall become entitled under this Act to any fractional part of a pound of consolidated guaranteed or debenture stock of the Company but in every case in which any such person would but for this enactment have become entitled to a fractional part of a pound of such stock the Company may at their option receive from such person such a further sum in cash as will make up an even pound or pay to such person in cash the amount of such fractional part.

Certificates
of shares &c.
to be ex-
changed.

70. On and after the date of amalgamation every holder of stocks in the capital of the Ely Valley Company in exchange for which any stock of the Company is to be paid or issued under this Act shall upon the delivery of the certificates for the same to the Company be entitled to receive and shall receive instead thereof from the Company the certificates of the stock of the Company to which such holder is entitled under the provisions of this Act and the certificates with respect to the stocks in the capital of the Ely Valley Company shall upon such exchange be cancelled.

Provision as
to lost cer-
tificates.

71. If the certificates for any stocks in the capital of the Ely Valley Company be lost or destroyed then upon proof thereof and upon an indemnity being given against any claim in respect of such lost or destroyed certificates to the satisfaction of the directors of the Company the Company shall deliver to the person entitled to such certificates a certificate for the stock of the Company to which he would be entitled under this Act as if such first-mentioned certificates had been delivered by him as hereinbefore provided.

72. All stock issued to holders of any stock of the Ely Valley Company under the provisions of this Act shall be held subject to the same trusts and obligations as those upon or to which the stock of the Ely Valley Company in respect of which such stock is substituted was immediately before the date of amalgamation held or subject and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting any such stock of the Ely Valley Company and every deed or other instrument or testamentary disposition of or affecting such stock shall take effect with reference to the whole or a proportionate part of the stock so substituted therefor as the case may be.

A.D. 1903.

Substituted stock to be held on same trusts as stock &c. for which it is substituted.

73. Trustees executors and administrators being holders of any stock of the Ely Valley Company may and shall accept the stock of the Company to be issued under the provisions of this Act to the several holders of the stocks of the Ely Valley Company in substitution for such stocks and may and shall hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the stock for which such stock of the Company was substituted.

Trustee shareholders of Ely Valley Company to accept substituted stock or cash.

74. Notwithstanding the amalgamation of the Ely Valley Company the secretary or other officers (if any) of that company shall not be or become officers of the Company but the Ely Valley Company shall discharge all obligations which may be due to such secretary and officers respectively or any of them.

As to officers of Ely Valley Company.

75. All unexercised powers of raising money conferred upon the Ely Valley Company by any Act of Parliament are subject to the provisions of this Act hereby cancelled.

Capital powers of Ely Valley Company repealed.

76. On and after the date of amalgamation the capital which immediately before the date of amalgamation was the capital of the Company inclusive of debenture stock shall be increased by addition thereto in the manner and to the extent necessary to give effect to the provisions of this Act relating to the Ely Valley Company Provided always that any additions to the Great Western Railway consolidated guaranteed stock or the Great Western Railway debenture stock under the authority or for the purposes of this Act shall be deemed to be part of and shall rank *pari passu* with the other like stocks of the Company.

As to capital of Company.

77. The Company by the order of any general meeting of the Company may create and issue new shares or stock for such additional capital as they shall think necessary not exceeding two million pounds exclusive of the other capital and other moneys

Power to raise additional capital.

A.D. 1903. — which they are or may be authorised to create and issue or raise by this or any other Act or Acts of Parliament and the Company may create and issue such new shares or stock either wholly or partially as ordinary or wholly or partially as preferential shares or stock as they may think fit.

As to disposal of new shares or stock. 78. Notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 the Company may in issuing any portion of the additional capital by this Act authorised dispose of all or any of the shares or stock representing the same at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

Power to cancel unissued shares or stock. 79. If the Company after having created any new shares or stock under the provisions of this Act or any other Act or Acts of Parliament relating to the Company or to any company amalgamated therewith determine not to issue the whole of the shares or stock created they may cancel the unissued shares or stock and may from time to time thereafter create and issue instead thereof other new shares or stock of an aggregate amount not exceeding the aggregate amount of the shares or stock so cancelled and in like manner the Company may create and issue new shares or stock in lieu of any new shares or stock which may have been issued and redeemed or in lieu of any certificate entitling the holder to be registered in respect of shares or stock.

Shares not to be issued until one fifth part thereof shall have been paid up. 80. The Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock. 81. Except as by or under the powers of this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be entitled and subject to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company and the new shares or stock were shares or stock in that capital The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on new shares or stock. 82. Every person who becomes entitled to new shares or stock of the Company under this Act shall in respect of the same be a holder of shares or stock in the Company and shall subject to the conditions on which the same may be issued be entitled to a

dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or stock. A.D. 1903.

83. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock of the Company to which a preferential dividend shall be assigned. Restriction as to votes in respect of preferential shares or stock.

84. Subject to the provisions of any Acts already passed by which the Company are authorised to create new shares or stock not already issued and to the provisions of this Act and any other Act passed in the present session of Parliament whether before or after the passing of this Act by which the Company may be authorised to create and issue capital by new shares or stock the Company may if they think fit create and issue new shares or stock of one and the same class for all or any part of the aggregate capital which they are by such other Acts and this Act respectively authorised to create and issue by the creation and issue of new shares or stock. New shares or stock raised under this Act and any other Act of past or present sessions may be of same class.

85. The Company may in respect of the additional capital of two million pounds which they are by this Act authorised to create and issue borrow on mortgage of their undertaking any sum not exceeding in the whole six hundred and sixty-six thousand pounds but no part thereof shall be borrowed until shares for so much of the said capital as is to be created by means of shares are issued and accepted and one half of such capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of that capital have been issued and accepted and that one half of that capital has been paid up and that not less than one fifth part of the amount of each separate share in that capital has been paid on account thereof before or at the time of the issue or acceptance thereof or until stock for one half of so much of the said additional capital as is to be created by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of Power to borrow.

A.D. 1903. — such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

Company
may issue
debenture
stock.

86. The Company may subject to the provisions of Part III. of the Companies Clauses Act 1863 create and issue debenture stock but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Mortgages
already
granted by
Company to
have priority.

87. All mortgages or bonds granted before the passing of this Act by the Company or by or in the name of any company whose undertaking is under the powers of any Act of Parliament purchased by the Company or amalgamated with the undertaking of or vested in the Company shall during the continuance of such mortgages or bonds and subject to the provisions of the Acts under which such mortgages or bonds were respectively granted have priority over all mortgages granted after the passing of this Act by the Company. But nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application
of moneys
raised by
Company.

88. All moneys raised by the Company under this Act whether by shares stock debenture stock or borrowing shall unless otherwise provided by this Act be applied only to the purposes of this Act and any other Act of the present session of Parliament to be carried into effect by the Company and to the general purposes of the undertaking of the Company being in every case purposes to which capital is properly applicable.

Power to
Company to
apply funds
to purposes
of Act.

89. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any moneys from time to time raised by them and which are not by any of the Acts relating to the Company made applicable to any special purpose or which being so made applicable are not required for the special purpose. And the Company may for the purposes of the amalgamation by this Act authorised and for the general purposes of their undertaking and for the more efficient working of their traffic issue any shares or stocks which under the authority of any Act passed prior to the present session of Parliament the Company may have created or may hereafter create but which are not or may not be required for the special purposes for which such shares or stocks respectively were authorised to be created. Provided that all

money raised by the issue of such shares or stocks shall be applied only to purposes to which capital is properly applicable. A.D. 1903

90. The North Western Company may apply to the purposes of this Act which they are empowered to carry into execution and to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any Acts relating to the North Western Company and which may not be required for the purposes to which they are by any such Acts made specially applicable. Power to North Western Company to apply funds to purposes of Act.

91. The Midland Company may apply to the purposes of this Act which they are empowered to carry into execution and to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any Acts relating to the Midland Company and which may not be required for the purposes to which they are by any such Acts made specially applicable. Power to Midland Company to apply funds to purposes of Act.

92. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845. Interest not to be paid on calls paid up.

93. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

94. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case Saving rights of Crown.

A.D. 1903. — may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Saving
rights of
Duchy of
Cornwall.

95. Nothing contained in this Act shall extend to authorise the Company to take use enter upon or interfere with any land soil or water or any rights in respect thereof belonging to His Majesty in right of the Duchy of Cornwall without the consent in writing of some two or more of such of the regular officers of the said duchy or of such other persons as may be duly authorised under the provisions of the Duchy of Cornwall Management Act 1863 section 39 to exercise all or any of the rights powers privileges and authorities by the said Act made exerciseable or otherwise for the time being exerciseable in relation to the duchy or belonging to the Duke of Cornwall for the time being without the consent of such duke testified in writing under the seal of the Duchy of Cornwall first had and obtained for that purpose or to take away diminish alter prejudice or affect any property rights profits privileges powers or authorities vested in or enjoyed by His Majesty in right of the Duchy of Cornwall or in or by the Duke of Cornwall for the time being.

Provision as
to general
Railway
Acts.

96. Nothing in this Act contained shall exempt the Company or the North Western Company or the Midland Company from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies.

Costs of Act.

97. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1903.

THE FIRST SCHEDULE

PART I.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY ARE REQUIRED
TO BE TAKEN BY THE COMPANY.

Parish or other Area.	No. on deposited Plans.	Description of Property.
RAILWAY (No. 7).		
Llanwnda - - -	37	Field garden barn-house stable and waste ground.
	38	Garden disused quarry and rough ground.
	39	Field rough ground barn barn-yard hay and corn ricks water-wheel and streams.
	41	Farmyard shed hay and corn ricks and stream.
	42	Mill and approach.
	43	Field and streams.
	44	Pond disused quarry and land by side.
	45	Garden and stream.
	46	Field and stream.
BRIDGES ROADS AND LANDS BETWEEN STEVENTON AND DIDCOT.		
Steventon - - -	4	Farmyard stable coach-house pigstyes shed and cow-house.
	5	Field orchard and watercourse.
	9	Garden pigstyes and closets.
	14	Orchard and field stream hay-ricks and cow-sheds.
	16	Field orchard and stream.
	20	Field orchard fowl-house and garden.
	23	Garden.
	29	Corn and seed warehouses railroad orchard and field.
	31	Field and orchard.
	32	Garden.
	33	Waste ground approach to houses and pump.
	34	Gardens and footpaths telegraph post and wire.
	36	Foundry stables store-houses shed out-building and land by side.
	37	Road culvert under and land by side of foundry.
	38	Foundry yard storage sheds garden approach to house and bank.
	39	Field orchard bank and wingwall to bridge.

A.D. 1903.

Parish or other Area.	No. on deposited Plans.	Description of Property.
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LENGTHENING OF BRIDGE AND LANDS AT NEWBURY STATION.

Borough of Newbury	34	Garden.
	35	Garden.

BRIDGES AND LANDS BETWEEN LINCOLN ROAD AND OLTON RESERVOIR.

Rural district of Yardley	2	Garden.
Solihull.	17	Drying ground wood storage and chopping sheds.
	28	Garden.
	28A	Garden.
	29	Garden and pigstye.
	29A	Garden.
	30	Garden.
	31	Garden.

BRIDGES ROADS AND LANDS BETWEEN NEWPORT AND UNDY.

Parish of Bishton in the rural district of Magor.	21	Strip of land.
Magor - - - -	49	House yard and outbuildings.

ROADS FOOTPATHS AND LANDS ADJACENT TO PORTISHEAD RAILWAY.

County borough of Bristol	15	Garden.
Bishopsworth.	1	Siding land by side coal screens and shed.

ALTERATION OF LEVELS OF ROADS IN THE PARISH OF TANWORTH.

Tanworth - - - -	1	Field.
	8	Garden.
	13	Approach to houses.
	14	House outbuildings and gardens.
	15	Field and garden.

ROADS AND LANDS IN THE PARISH AND RURAL DISTRICT OF YARDLEY.

Parish and rural district of Yardley.	11	Workshop engine shed stable garden out buildings and well.
	12	Garden.
	13	Garden and summerhouse.
	14	Garden.
	15	Garden and shed.
	16	Warehouse garden and sheds.
	17	Garden and footpath.
	18	Garden and footpath.
	19	Garden footpath and shed.
	20	Garden and footpath.
	21	Garden and footpath.
	22	Garden and footpath.
	23	Garden and footpath.
	24	Garden and footpath.
	25	Garden and well.
	26	Garden entrance gate and footpath.
	35	Garden.
	36	Garden.
	37	Garden.
	38	Garden.
	39	Garden.
	43	Field and enclosure.
	44	Orchard garden and footpath.

A.D. 1903.

Parish or other Area.	No. on deposited Plans.	Description of Property.
WIDENING OF BRIDGE OVER SANDY LANE.		
City and county borough of Birmingham.	2	Forecourt to house.
	3	Forecourt to house.
	3A	Forecourt to shop.
	4	House and yard.
	17	Road pavements approach to brewery and forecourts.
	18	Builders' yard offices stables sheds enclosures and telegraph and telephone posts and wires.
	22	Coal wharf.

ROADS AND FOOTPATHS AT RISCA.

Urban district of Risca -	18	Drying ground.
	21	Garden and fowl-house.
	37	Garden.

LANDS AT LOUDWATER.

Chepping Wycombe (rural).	1	Gardens.
	2	Garden pigstye fowl run and sheds.
	3	Gardens.
	4	Garden and sheds.
	5	Garden and sheds.
	6	Garden and sheds.
	7	Gardens and shed.
	8	Gardens and shed.
	9	Gardens.
	10	Garden.
	11	Garden.
	12	Gardens.
	13	Gardens.

LANDS AT STONEYCOOMBE BRIDGE.

Ipplepen - - -	1	Wood and rough ground.
	2	Quarry tank land by side of railway wood bank watercourse and culvert.

PART II.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY ARE REQUIRED TO BE TAKEN BY THE JOINT COMPANIES.

Parish or other Area.	No. on deposited Plans.	Description of Property.
WIDENING ALTERATION AND IMPROVEMENT OF THE BRISTOL PORT AND PIER RAILWAY.		
Shirehampton - - -	46	Garden.
	47	Garden.
	48	Garden.
	53	Park plantations and footpaths.
Henbury - - -	2	Park plantation footpath and ponds.
	5	Wood and occupation road.
	6	Field (part of park).
	7	Field.

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SECOND SCHEDULE.

DESCRIBING PROPERTIES UNDER WHICH EASEMENTS ONLY
MAY BE TAKEN.

Parish or other Area.	No. on deposited Plans.																			
RAILWAY (No. 7).																				
Fishguard -	2	3	7.																	
Manorowen in the rural	21	27	29	31	32	33	34	35	36	37	38	40	41	42	43					
district of Haverford-	44	44A	46	47	48	49	50	51	52	53	54	55	56	57						
west.	58	59	60	61	63	64	65	66	67	68	69.									
DEVIATION (No. 2).																				
St. Stephens-by-Saltash -	29 to 50 inclusive.																			

THIRD SCHEDULE.

STATEMENT OF CAPITAL OF ELY VALLEY RAILWAY COMPANY.

1.	2.	3.	4.	5.
Description of Capital.	Amount Issued.	Amount held by or on behalf of Great Western Railway Company and to be cancelled.	Amount held otherwise than by or on behalf of Great Western Railway Company.	Stock of Great Western Railway Company to be issued to holders of Amounts in column 4.
Consolidated stock	£83,000	£35,050	£48,000	£57,600 five per cent. consolidated guaranteed stock being at the rate of £120 for each £100 of consolidated stock.
Debenture stock 4½ per cent.	£15,000	—	£15,000	£15,000 four and a half per cent. debenture stock.
Debenture stock 4 per cent.	£6,000	—	£6,000	£6,000 four per cent. debenture stock.

Printed by EYRE and SPOTTISWOODE,
FOR
T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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